THE REPRESENTATION OF THE PEOPLE ACT, 1950
(43 OF 1950)

[12*th May*, 1950.]

An Act to provide the allocation of seats in, and the delimitation of constituencies for the purpose of election to, the House of the People and the Legislatures of States, the qualifications of voters at such elections, the preparation of electoral rolls, [1][the manner of filling seats in the Council of States to be filled by representatives of [2][Union territories]], and matters connected therewith.

BE it enacted by Parliament as follows:—

PART I
PRELIMINARY

1. Short title. —This Act may be called the Representation of the People Act, 1950.

2. Definitions.— [3]* * * In this Act, unless the context otherwise requires,—

(*a*) "article" means an article of the Constitution;

(*b*) "Assembly constituency" means a constituency provided [4][by law] for the purpose of elections to the Legislative Assembly of a State;

(*c*) "Council constituency" means a constituency provided [5][by law] for the purpose of elections to the Legislative Council of a State;

[6]* * * * *

(*d*) "Election Commission" means the Election Commission appointed by the President under article 324;

(*e*) "order" means an order published in the Official Gazette;

(*f*) "Parliamentary constituency" means a constituency provided [7][by law] for the purpose of elections to the House of the People;

[8]* * * * *

(*g*) "person" does not include a body of persons;

(*h*) "prescribed" means prescribed by rules made under this Act;

[9][(i) "State" includes a Union territory;]

(*j*) "State Government", in relation to a Union territory, means the administrator thereof.]

[10]* * * * *

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1. Ins. by Act 73 of 1950, s. 2.
2. Subs. by the Adaptation of Laws (No. 2) Order, 1956, for "Part C States".
3. The brackets and figure "(1)" omitted by Act 103 of 1956, s. 65.
4. Subs. by Act 2 of 1956, s. 2, for "by order made under section 9".
5. Subs. by the Adaptation of Laws (No. 2) Order, 1956, for "by order made under section 11".
6. Cl. (*cc*) ins. by Act 73 of 1950, s. 3 and omitted by Act 103 of 1956, s. 65.
7. Subs. by Act 2 of 1956, s. 2, for "by section 6 or by order made thereunder".
8. Cl. (*ff*) ins. by Act 67 of 1951, s. 2 was omitted by the North-Eastern Areas (Reorganisation) (Adaptation of Laws on Union Subjects) Order, 1974, s. 3 and Sch. (w.e.f. 21-1-1972).
9. Subs. by s. 3 and Sch., *ibid*., for the former cl. (*i*) (w.e.f. 21-1-1972).
10. Sub-section (*2*) omitted by the Adaptation of Laws (No. 2) Order, 1956.

PART II

ALLOCATION OF SEATS AND DELIMITATION OF CONSTITUENCIES

The House of the People

[1][**3. Allocation of seats in the House of the People.**—The allocation of seats to the States in the House of the People and the number of seats, if any, to be reserved for the Scheduled Castes and for the Scheduled Tribes of each State shall be as shown in the First Schedule.

4. Filling of seats in the House of the People and parliamentary constituencies.—[2]* * * * *

[3][(*2*) All the seats in the House of the People allotted to the States under section 3 shall be seats to be filled by persons chosen by direct election from parliamentary constituencies in the States.]

(*3*) Every parliamentary constituency referred to in sub-section (*2*) shall be a single-member constituency.

(*4*) Every State to which only one seat is allotted under section 3 shall form one parliamentary constituency.

[4][(*5*) Save as provided in sub-section (*4*), the extent of all parliamentary constituencies except the parliamentary constituencies in the Union territory of Arunachal Pradesh shall be as determined by the orders of the Delimitation Commission made under the provisions of the Delimitation Act, 1972 (76 of 1972) and the extent of the parliamentary constituencies in the Union territory of Arunachal Pradesh shall be as determined by the order of the Election Commission under the provisions of the Government of Union Territories Act, 1963 (20 of 1963).]]

5. [*Parliamentary constituencies.*] *Rep. by the Representation of the People (Amendment) Act,* 1956 (2 *of* 1956), *s.* 4.

6. [*Delimitation of parliamentary constituencies.*] *Rep. by the Adaptation of Laws* (*No.* 2) *Order*, 1956.

The State Legislative Assemblies

[5][**7. Total number of seats in Legislative Assemblies and Assembly Constituencies.**—(*1*) [6][Subject to the provisions of [7][sub-sections (*1A*), (*1B*) and (*1C*)], the total number of seats] in the Legislative Assembly of each State specified in the Second Schedule, to be filled by persons chosen by direct election from Assembly Constituencies, and the number of seats, if any, to be reserved for the Scheduled Castes and for the Scheduled Tribes of the State, shall be as shown in that Schedule:

Provided that for the period referred to in clause (*2*) of article 371A, the total number of seats allotted to the Legislative Assembly of the State of Nagaland shall be [8][fifty-two], of which—

(*a*) [9][twelve seats] shall be allocated to the Tuensang district and shall be filled by persons chosen by the members of the regional council, referred to in that article, from amongst themselves in such manner as the Governor, after consulting that Council may, by notification in the Official Gazette, specify, and

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1. Subs. by Act 47 of 1966, s. 2, for ss. 3 and 4 (w.e.f. 14-12-1966).
2. Sub-section (1) omitted by Act 29 of 1975, s. 11 (w.e.f. 15-8-1975).
3. Subs. by s. 11, *ibid*., for sub-section (*2*) (w.e.f. 15-8-1975).
4. Subs. by Act 88 of 1976, s. 2, for sub-section (*5*).
5. Subs. by Act 47 of 1966, s. 4, for s. 7 (w.e.f. 14-12-1966). Original ss. 8 and 9 were rep. by Act 2 of 1956, s. 5 and the Adaptation of Laws (No. 2) Order, 1956, respectively.
6. Subs. by Act 8 of 1980, s. 2, for certain words (w.e.f. 1-9-1979).
7. Subs. by Act 38 of 1992, s. 2, for "sub-sections (*1A*) and (*1B*)" (w.e.f. 5-12-1992).
8. Subs. by Act 61 of 1968, s. 4, for "forty-six".
9. Subs. by s. 4, *ibid*., for "six seats" .

[1]* * * * *

11. Delimitation of Council Constituencies.—As soon as may be after the commencement of this Act, the President shall, by order, determine--

(*a*) the constituencies into which each State having a Legislative Council shall be divided for the purpose of elections to that Council under each of the sub-clauses (*a*), (*b*) and (*c*) of clause (3) of article 171;

(*b*) the extent of each constituency; and

(*c*) the number of seats allotted to each constituency.

Provisions as to orders delimiting constituencies

12. Power to alter or amend orders.—[2][(*1*)] The President may, from time to time, after consulting the Election Commission, by order, alter or amend any order made by him under [3]* * * section 11.

[4][(*2*) An order under sub-section (*1*) may contain provisions for the allocation of any member representing any council constituency immediately before the making of the order to any constituency delimited anew or altered by the order and for such other incidental and consequential matters as the President may deem necessary.]

13. Procedure as to orders delimiting constituencies.—[5]* * * * *

(*3*) Every order made under [6]* * * section 11 or section 12 shall be laid before Parliament as soon as may be after it is made, and shall be subject to such modifications as Parliament may make on a motion made within twenty days from the date on which the order is so laid.

[7][PART IIA
OFFICERS

13A. Chief electoral officers.—(*1*) There shall be for each State a chief electoral officer who shall be such officer of Government as the Election Commission may, in consultation with that Government, designate or nominate in this behalf.

(*2*) Subject to the superintendence, direction and control of the Election Commission, the chief electoral officer shall supervise the preparation, revision and correction of all electoral rolls in the State under this Act.

[8][**13AA. District election officers.**—(*1*) For each district in a State, [9][***], the Election Commission shall, in consultation with the Government of the State, designate or nominate a district election officer who shall be an officer of Government:

Provided that the Election Commission may designate or nominate more than one such officer for a district if the Election Commission is satisfied that the functions of the office cannot be performed satisfactorily by one officer.

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1. Sub-section (*3*) ins. by the Adaptation of Laws (No. 2) Order, 1956 and omitted by Act 37 of 1957, s. 12.
2. S. 12 re-numbered as sub-section (*1*) of that section by Act 20 of 1960, s. 2.
3. The words and figures "section 6, section 9, or" omitted by Act 2 of 1956, s. 7.
4. Ins. by Act 20 of 1960, s. 2.
5. Sub-sections (*1*) and (*2*) omitted by Act 2 of 1956, s. 8.
6. The words and figures "section 6, section 9," omitted by s. 8, *ibid*.
7. Ins. by s. 9, *ibid*.
8. Ins. by Act 47 of 1966, s. 5 (w.e.f. 14-12-1966).
9. The words "other than a Union territory," omitted by Act, 2 of 2004, s. 2 (*a*).

(*2*) Where more than one district election officer are designated or nominated for a district under the proviso to sub-section (*1*), the Election Commission shall in the order designating or nominating the district election officers also specify the area in respect of which each such officer shall exercise jurisdiction.

(*3*) Subject to the superintendence, direction and control of the chief electoral officer, the district election officer shall coordinate and supervise all work in the district or in the area within his jurisdiction in connection with the preparation and revision of the electoral rolls for all parliamentary, assembly and council constituencies within the district.

(*4*) The district election officer shall also perform such other functions as may be entrusted to him by the Election Commission and the chief electoral officer.]

13B. Electoral registration officers.—(*1*) The electoral roll [1][2][for each parliamentary constituency in the State of Jammu and Kashmir or in a Union territory not having a Legislative Assembly], each assembly constituency and each Council constituency] shall be prepared and revised by an electoral registration officer who shall be such officer of Government or of a local authority as the Election Commission may, in consultation with the Government of the State in which the constituency is situated, designate or nominate in this behalf.

(*2*) An electoral registration officer may, subject to any prescribed restrictions, employ such persons as he thinks fit for the preparation and revision of the electoral roll for the constituency.

13C. Assistant electoral registration officers.—(*1*) The Election Commission may appoint one or more persons as assistant electoral registration officers to assist any electoral registration officer in the performance of his functions.

(*2*) Every assistant electoral registration officer shall, subject to the control of the electoral registration officer, be competent to perform all or any of the functions of the electoral registration officer.

[3][**13CC. Chief Electoral Officers, District Election Officers, etc., deemed to be on deputation to Election Commission**.—The officers referred to in this Part and any other officer or staff employed in connection with the preparation, revision and correction of the electoral rolls for, and the conduct of, all elections shall be deemed to be on deputation to the Election Commission for the period during which they are so employed and such officers and staff shall, during that period, be subject to the control, superintendence and discipline of the Election Commission.]

PART IIB

ELECTORAL ROLLS FOR PARLIAMENTARY CONSTITUENCIES

[4][**13D. Electoral rolls for parliamentary constituencies**.— (*1*) The electoral roll for every parliamentary constituency, other than a parliamentary constituency in the State of Jammu and Kashmir or in a Union territory not having a Legislative Assembly, shall consist of the electoral rolls for all the assembly constituencies comprised within that parliamentary constituency; and it shall not be necessary to prepare or revise separately the electoral roll for any such parliamentary constituency:

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1. Subs. by Act 103 of 1956, s. 65, for certain words.
2. Subs. by Act 47 of 1966, s. 6, for certain words (w.e.f.14-12-1966).
3. Ins. by Act 1 of 1989, s. 2 (w.e.f. 15-3-1989).
4. Subs. by Act 47 of 1966, s. 7, for s. 13D (w.e.f. 14-12-1966).

Provided that for the period referred to in clause (2) of article 371A, it shall be necessary to prepare and revise separately the electoral roll for that part of the parliamentary constituency of Nagaland which comprises the Tuensang district and the provisions of Part III shall apply in relation to the preparation and revision of the electoral roll of the said part as they apply in relation to an assembly constituency.

(*2*) The provisions of Part III shall apply in relation to every parliamentary constituency in the State of Jammu and Kashmir or in a Union territory not having a Legislative Assembly as they apply in relation to an assembly constituency.]

PART III

[1][ELECTORAL ROLLS FOR ASSEMBLY [2]* * * CONSTITUENCIES]

[3][**14. Definitions.**—In this Part, unless the context otherwise requires,—

(*a*) "constituency" means an Assembly constituency [2]* * *;

(*b*) "qualifying date", in relation to the preparation or revision of every electoral roll under this Part, means [4][the 1st day of January] of the year in which it is so prepared or revised:]

[5][Provided that "qualifying date", in relation to the preparation or revision of every electoral roll under this Part in the year 1989, shall be the 1st day of April, 1989.]

15. Electoral roll for every constituency.—For every constituency there shall be an electoral roll which shall be prepared in accordance with the provisions of this Act under the superintendence, direction and control of the Election Commission.

16. Disqualifications for registration in an electioral roll—(*1*) A person shall be disqualified for registration in an electoral roll if he—

(*a*) is not a citizen of India; or

(*b*) is of unsound mind and stands so declared by a competent court; or

(*c*) is for the time being disqualified from voting under the provisions of any law relating to corrupt[6]* * * practices and other offences in connection with elections.

(*2*) The name of any person who becomes so disqualified after registration shall forthwith be struck off the electoral roll in which it is included:

[7][Provided that the name of any person struck off the electoral roll of a constituency by reason of a disqualification under clause (*c*) of sub-section (*1*) shall forthwith be re-instated in that roll if such disqualification is, during the period such roll is in force, removed under any law authorising such removal.]

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1. Subs. by Act 2 of 1956, s. 10, for the heading "REGISTRATION OF PARLIAMENTARY ELECTORS".
2. Certain words omitted by Act 103 of 1956, s. 65.
3. Subs. by Act 2 of 1956, s. 11, for s. 14.
4. Subs. by Act 58 of 1958, s. 5, for "the 1st day of March" (w.e.f. 1-1-1959).
5. Ins. by Act 21 of 1989, s. 3 (w.e.f. 28-3-1989).
6. The words "and illegal" ins. by Act 73 of 1950, s. 4 and omitted by Act 58 of 1960, s. 3 and Sch. II.
7. Ins. by Act 73 of 1950, s. 4.

17. No person to be registered in more than one constituency.—No person shall be entitled to be registered in the electoral roll for more than one constituency [1]* * *.

18. No Person to be registered more than once in any constituency.—No person shall be entitled to be registered in the electoral roll for any constituency more than once.

[2][**19. Conditions of registration.**--Subject to the foregoing provisions of this Part, every person who—

(*a*) is not less than [3][eighteen years] of age on the qualifying date, and

(*b*) is ordinarily resident in a constituency,

shall be entitled to be registered in the electoral roll for that constituency.]

20. Meaning of "ordinarily resident".—[4][(*1*) A person shall not be deemed to be ordinarily resident in a constituency on the ground only that he owns, or is in possession of, a dwelling house therein.

(*1A*) A person absenting himself temporarily from his place of ordinary residence shall not by reason thereof cease to be ordinarily resident therein.

(*1B*) A member of Parliament or of the Legislature of a State shall not during the term of his office cease to be ordinarily resident in the constituency in the electoral roll of which he is registered as an elector at the time of his election as such member, by reason of his absence from that constituency in connection with his duties as such member.]

(*2*) A person who is a patient in any establishment maintained wholly or mainly for the reception and treatment of persons suffering from mental illness or mental defectiveness, or who is detained in prison or other legal custody at any place, shall not by reason thereof be deemed to be ordinarily resident therein.

[5][(*3*) Any person having a service qualification shall be deemed to be ordinarily resident on any date in the constituency in which, but for his having such service qualification, he would have been ordinarily resident on that date.]

(*4*) Any person holding any office in India declared[6] by the President in consultation with the Election Commission to be an office to which the provisions of this sub-section apply, [7]* * * shall be deemed to be ordinarily resident [8]*** on

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1. The words "in the same State" ins. by Act 2 of 1956, s. 12 and omitted by Act 58 of 1958, s. 6.
2. Subs. by Act 58 of 1958, s. 7, for s. 19.
3. Subs. by Act 21 of 1989, s. 4, for "twenty-one years" (w.e.f. 28-3-1989).
4 Subs. by Act 58 of 1958, s. 8, for sub-section (*1*).
5. Subs. by Act 47 of 1966, s. 8, for sub-section (*3*) (w.e.f. 14-12-1966).
6. The following offices have been declared by the President by Notification No. S.O. 959, dated the 18th April, 1960:—
   1. The President of India.
   2. The Vice-President of India.
   3. Governors of States.
   4. Cabinet Ministers of the Union or of any State.
   5. The Deputy Chairman and Members of the Planning Commission.
   6. The Ministers of State of the Union or of any State.
   7. Deputy Ministers of the Union or of any State.
   8. The Speaker of the House of the People or of any Legislative Assembly.
   9. The Chairman of any State Legislative Council.
   10. Lieutenant Governors of Union territories.
   11. The Deputy Speaker of the House of the People or of any State Legislative Assembly.
   12. The Deputy Chairman of the Council of States or of any State Legislative Council.
   13. Parliamentary Secretaries of the Union or of any State.
7. Certain words omitted by Act 47 of 1966, s. 8 (w.e.f. 14-12-1966).
8. The words "during any period or" omitted by Act 2 of 1956, s. 14.

THE REPRESENTATION OF THE PEOPLE ACT, 1951

ARRANGEMENT OF SECTIONS

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165. Release of premises from requisition.
166. Delegation of functions of the State Government with regard to requisitioning.
167. Penalty for contravention of any order regarding requisitioning.
168. [*Repealed*.]

PART XI
GENERAL

169. Power to make rules.
170. Jurisdiction of civil courts barred.
171. [*Repealed*.]

THE REPRESENTATION OF THE PEOPLE ACT, 1951

ACT NO. 43 OF 1951

[17*th July*, 1951.]

An Act to provide for the conduct of elections of the Houses of Parliament and to the House or Houses of the Legislature of each State, the qualifications and disqualifications for membership of those Houses, the corrupt [1]* * * practices and other offences at or in connection with such elections and the decision of doubts and disputes arising out of or in connection with such elections.

BE it enacted by Parliament as follows:—

PART I
PRELIMINARY

1. Short title.—This Act may be called the Representation of the People Act, 1951.

2. Interpretation.—(*1*) In this Act, unless the context otherwise requires,—

(*a*) each of the expressions defined in section 2 or sub-section (*1*) of section 27 of the Representation of the People Act 1950 (43 of 1950), but not defined in this Act, shall have the same meaning as in that Act;

(*b*) "appropriate authority" means, in relation to an election to the House of the People or the Council of States [2]* * *, the Central Government, and in relation to an election to the Legislative Assembly or the Legislative Council of a State, the State Government;

[3][(*bb*) "chief electoral officer" means the officer appointed under section 13A of the Representation of the People Act, 1950 (43 of 1950);]

(*c*) "corrupt practice" means any of the practices specified in section 123 [4]* * *;

[5][(*cc*) "district election officer" means the officer designated or nominated under section 13AA of the Representation of the People Act, 1950 (43 of 1950);]

(*d*) "election" means an election to fill a seat or seats in either House of Parliament or in the House or either House of the Legislature of a State other than the State of Jammu and Kashmir [6]* * *;

[7][(*e*) "elector" in relation to a constituency means a person whose name is entered in the electoral roll of that constituency for the time being in force and who is not subject to any of the disqualifications mentioned in section 16 of the Representation of the People Act, 1950 (43 of 1950);]

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1. The words "and illegal" omitted by Act 27 of 1956, s. 2.
2. Certain words omitted by Act 103 of 1956, s. 66.
3. Ins. by Act 27 of 1956, s. 3.
4. The words and figures "or section 124" omitted by s. 3, *ibid.*
5. Ins. by Act 47 of 1966, s. 15 (w.e.f. 14-12-1966).
6. Certain words omitted by Act 58 of 1958, s. 14.
7. Subs. by Act 27 of 1956, s. 3, for cl. (*e*).

[1][(*f*) "political party" means an association or a body of individual citizens of India registered with the Election Commission as a political party under section 29A;]

(*g*) "prescribed" means prescribed by rules made under this Act;

[2][(*h*) "public holiday" means any day which is a public holiday for the purposes of section 25 of the Negotiable Instruments Act, 1881 (26 of 1881);]

[3]* * * * *

[4]* * * * *

[5][(*i*) "sign", in relation to a person who is unable to write his name, means authenticate in such manner as may be prescribed.

[6]* * * * *

[7]* * * * *

(*2*) For the purposes of this Act, [8]* * * a Parliamentary constituency, an Assembly constituency, a Council constituency, a local authorities' constituency, a graduates' constituency and a teachers' constituency shall each be treated as a constituency of a different class.

(*3*) Any requirement under this Act that a notification, order, rule, declaration, notice or list issued or made by any authority shall be published in the Official Gazette, shall, unless otherwise expressly provided in this Act, be construed as a requirement that the notification, order, rule, declaration, notice or list shall—

(*a*) where it is issued or made by the Central Government, be published in the Gazette of India;

(*b*) where it is issued or made by a State Government, be published in the Official Gazette of the State; and

(*c*) where it is issued or made by any other authority, be published in the Gazette of India if it relates to an election to, or membership of, either House of Parliament [8]* * * and in the Official Gazette of the State if it relates to an election to, or membership of, the House or either House of the Legislature of a State.

(*4*) Where, under any of the provisions of this Act, anything is to be prescribed, different provisions may be made for different cases or classes of cases.

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1. Cl.(*f*) which was omitted by Act 27 of 1956, s. 3, and ins. by Act 1 of 1989, s. 3 (w.e.f. 15-6-1989).
2. Ins. by Act 47 of 1966, s. 15 (w.e.f. 14-12-1966).
3. Cls. (*h*) and (*i*) omitted by Act 27 of 1956, s. 3.
4. Cl. (*i*) re-lettered as cl. (*h*) by s. 3, *ibid.*, omitted by the Adaptation of Laws (No. 2) Order, 1956.
5. Cls. (*k*) and (*i*) re-lettered as cls. (*i*) and (*k*) by Act 27 of 1956, s. 3.
6. Cl. (*j*) ins. by s. 3, *ibid.*, and omitted by the Adaptation of Laws (No. 2) Order, 1956.
7. Cl. (*k*) omitted by Act 47 of 1966, s. 15 (w.e.f. 14-12-1966).
8. Certain words omitted by Act 103 of 1956, s. 66.

[1]* * * * *

[2][(*5*) Any reference in this Act to a law which is not in force in the State of Jammu and Kashmir shall, in relation to that State, be construed as a reference to the corresponding law, if any, in force in that State.]

[1]* * * * *

PART II
[3][QUALIFICATIONS AND DISQUALIFICATIONS]

CHAPTER I.—*Qualifications for Membership of Parliament.*

[4][**3. Qualification for membership of the Council of States.**—A person shall not be qualified to be chosen as a representative of any State [5]* * * or Union territory in the Council of States unless he is an elector for a Parliamentary constituency [6][in India].]

4. Qualifications for membership of the House of the People.—A person shall not be qualified to be chosen to fill a seat in the House of the People [7]* * *, unless—

(*a*) in the case of a seat reserved for the Scheduled Castes in any State, he is a member of any of the Scheduled Castes, whether of that State or of any other State, and is an elector for any Parliamentary constituency;

(*b*) in the case of a seat reserved for the Scheduled Tribes in any State (other than those in the autonomous districts of Assam), he is a member of any of the Scheduled Tribes, whether of that State or of any other State (excluding the tribal areas of Assam), and is an elector for any Parliamentary constituency;

(*c*) in the case of a seat reserved for the Scheduled Tribes in the autonomous districts of Assam, he is a member of any of those Scheduled Tribes and is an elector for the Parliamentary constituency in which such seat is reserved or for any other Parliamentary constituency comprising any such autonomous district; [8]* * *

[9][(*cc*) in the case of the seat reserved for the Scheduled Tribes in the Union territory of [10][Lakshadweep], he is a member of any of those Scheduled Tribes and is an elector for the Parliamentary constituency of that Union territory; [11]* * *]

[12][(*ccc*) in the case of the seat allotted to the State of Sikkim, he is an elector for the Parliamentary constituency for Sikkim;]

(*d*) in the case of any other seat, he is an elector for any Parliamentary constituency.

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1. Sub-sections (*5*) and (*7*) omitted and sub-section (*6*) renumbered as sub-section (*5*) by Act 27 of 1956, s. 3.
2. Subs. by Act 47 of 1966, s. 15, for sub-section (*5*).
3. Subs. by s. 16, *ibid.*, for the previous heading (w.e.f. 14-12-1966).
4. Subs. by the Adaptation of Laws (No. 2) Order, 1956, for s. 3.
5. Certain words omitted by Act 47 of 1966, s. 17 (w.e.f. 14-12-1966).
6. Subs. by Act 40 of 2003, s. 2.
7. Certain words omitted by Act 29 of 1975, s. 12 (w.e.f. 15-8-1975).
8. The word "and" omitted by Act 47 of 1966, s. 18 (w.e.f. 14-12-1966).
9. Ins. by s. 18, *ibid.* (w.e.f. 14-12-1966).
10. Subs. by the Laccadive, Minicoy and Amindivi Islands (Alteration of Name) Adaptation of Laws Order, 1974 (w.e.f. 1-11-1973).
11. The word "and" omitted by Act 10 of 1976, s. 2 and Sch. (w.e.f. 9-9-1975).
12. Ins. by s. 2 and Sch., *ibid.* (w.e.f. 9-9-1975).

5. Qualifications for membership of a Legislative Assembly.—A person shall not be qualified to be chosen to fill a seat in the Legislative Assembly of a State unless—

(*a*) in the case of a seat reserved for the Scheduled Castes or for the Scheduled Tribes of that State, he is a member of any of those castes or of those tribes, as the case may be, and is an elector for any Assembly constituency in that State;

(*b*) in the case of a seat reserved for an autonomous district of Assam, [1]* * * he is a member of a [2][Scheduled Tribe of any autonomous district] and is an elector for the Assembly constituency in which such seat or any other seat is reserved for that district; and

(*c*) in the case of any other seat, he is an elector for any Assembly constituency in that State:

[3][Provided that for the period referred to in clause (*2*) of article 371A, a person shall not be qualified to be chosen to fill any seat allocated to the Tuensang district in the Legislative Assembly of Nagaland unless he is a member of the regional council referred to in that article.]

[4][**5A. Qualifications for membership of Legislative Assembly of Sikkim.** —[5][(*1*)] Notwithstanding anything contained in section 5, a person shall not be qualified to be chosen to fill a seat in the Legislative Assembly of Sikkim (deemed to be the Legislative Assembly of that State duly constituted under the Constitution) unless —

(*a*) in the case of a seat reserved for Sikkimese of Bhutia-Lepcha origin, he is a person either of Bhutia or Lepcha origin and is an elector for any Assembly constituency in the State other than the constituency reserved for the Sanghas;

(*b*) in the case of a seat reserved for Sikkimese of Nepal origin, he is a person of Nepali origin and is an elector for any Assembly constituency in the State;

(*c*) in the case of a seat reserved for Scheduled Castes, he is a member of any of the castes specified in the Representation of Sikkim Subjects Act, 1974 and is an elector for any Assembly constituency in the State; and

(*d*) in the case of a seat reserved for Sanghas, he is an elector of the Sangha constituency.]

[6][(*2*) Notwithstanding anything contained in section 5, a person shall not be qualified to be chosen to fill a seat in the Legislative Assembly of the State of Sikkim, to be constituted at any time after the commencement of the Representation of the People (Amendment) Act, 1980 (8 of 1980), unless—

(*a*) in the case of a seat reserved for Sikkimese of Bhutia-Lepcha origin, he is a person either of Bhutia or Lepcha origin and is an elector for any assembly constituency in the State other than the constituency reserved for the Sanghas;

(*b*) in the case of a seat reserved for the Scheduled Castes, he is a member of any of those castes in the State of Sikkim and is an elector for any assembly constituency in the State;

(*c*) in the case of a seat reserved for Sanghas, he is an elector of the Sangha constituency; and

(*d*) in the case of any other seat, he is an elector for any assembly constituency in the State.

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1. Certain words omitted by the North-Eastern Areas (Reorganisation) (Adaptation of Laws on Union Subjects) Order, 1974 (w.e.f. 21-1-1972).
2. Subs. by Act 47 of 1966, s. 19, for "Scheduled Tribe of that district" (w.e.f. 14-12-1966).
3. Ins. by Act 27 of 1962, s. 11.
4. Ins. by Act 10 of 1976, s. 2 and Sch. (w.e.f. 9-9-1975).
5. S. 5A renumbered as sub-section (*1*) of that section by Act 8 of 1980, s. 3 (w.e.f. 1-9-1979).
6. Ins. by s. 3, *ibid.* (w.e.f. 1-9-1979).

Explanation.—In this sub-section "Bhutia" includes Chumbipa, Dopthapa, Dukpa, Kagatey, Sherpa, Tibetan, Tromopa and Yolmo.]

6. Qualification for membership of a Legislative Council.—(*1*) A person shall not be qualified to be chosen to fill a seat in the Legislative Council of a State to be filled by election unless he is an elector for any Assembly constituency in that State.

(*2*) A person shall not be qualified to be chosen to fill a seat in the Legislative Council of a State to be filled by nomination by the Governor [1]* * * unless he is ordinarily resident in the State.

[2][CHAPTER III.—*Disqualifications for membership of Parliament and State Legislatures*

7. Definition.—In this Chapter,—

(*a*) "appropriate Government" means in relation to any disqualification for being chosen as or for being a member of either House of Parliament, the Central Government, and in relation to any disqualification for being chosen as or for being a member of the Legislative Assembly or Legislative Council of a State, the State Government;

(*b*) "disqualified" means disqualified for being chosen as, and for being, a member of either House of Parliament or of the Legislative Assembly or Legislative Council of a State.

8. Disqualification on conviction for certain offences.—[3][(*1*) A person convicted of an offence punishable under—

(*a*) section 153A (offence of promoting enmity between different groups on ground of religion, race, place of birth, residence, language, etc., and doing acts prejudicial to maintenance of harmony) or section 171E (offence of bribery) or section 171F (offence of undue influence or personation at an election) or sub-section (*1*) or sub-section (*2*) of section 376 or section 376A or section 376B or section 376C or section 376D (offences relating to rape) or section 498A (offence of cruelty towards a woman by husband or relative of a husband) or sub-section (*2*) or sub-section (*3*) of section 505 (offence of making statement creating or promoting enmity, hatred or ill-will between classes or offence relating to such statement in any place of worship or in any assembly engaged in the performance of religious worship or religious ceremonies) of the Indian Penal Code (45 of 1860); or

(*b*) the Protection of Civil Rights Act, 1955 (22 of 1955) which provides for punishment for the preaching and practice of "untouchability", and for the enforcement of any disability arising therefrom; or

(*c*) section 11 (offence of importing or exporting prohibited goods) of the Customs Act, 1962 (52 of 1962); or

(*d*) sections 10 to 12 (offence of being a member of an association declared unlawful, offence relating to dealing with funds of an unlawful association or offence relating to contravention of an order made in respect of a notified place) of the Unlawful Activities (Prevention) Act, 1967 (37 of 1967); or

(*e*) the Foreign Exchange (Regulation) Act, 1973 (46 of 1973); or

(*f*) the Narcotic Drugs and Psychotropic Substances Act, 1985 (61 of 1985); or

(*g*) section 3 (offence of committing terrorist acts) or section 4 (offence of committing disruptive activities) of the Terrorist and Disruptive Activities (Prevention) Act, 1987 (28 of 1987); or

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1. The words "or the Rajpramukh, as the case may be" omitted by the Adaptation of Laws (No. 2) Order, 1956.
2. Subs. by Act 47 of 1966, s. 20, for Chapter III (w.e.f. 14-12-1966). Previous Chapter IV (ss. 10 and 11) was rep. by Act 103 of 1956, s. 66.
3. Subs. by Act 1 of 1989, s. 4, for sub-sections (*1*) and (*2*) (w.e.f. 15-3-1989).

(*h*) section 7 (offence of contravention of the provisions of sections 3 to 6) of the Religious Institutions (Prevention of Misuse) Act, 1988 (41 of 1988); or

(*i*) section 125 (offence of promoting enmity between classes in connection with the election) or section 135 (offence of removal of ballot papers from polling stations) or section 135A (offence of booth capturing) of clause (*a*) of sub-section (*2*) of section 136 (offence of fraudulently defacing or fraudulently destroying any nomination paper) of this Act; [1][or]

[1][(*j*) section 6 (offence of conversion of a place of worship) of the Places of Worship (Special Provisions) Act, 1991;] [2][or]

[3][(*k*) section 2 (offence of insulting the Indian National Flag or the Constitution of India) or section 3 (offence of preventing singing of National Anthem) of the Prevention of Insults to National Honour Act, 1971 (69 of 1971),][4] [; or]

[4][(*l*) the Commission of Sati (Prevention) Act, 1987 (3 of 1988); or

(*m*) the Prevention of Corruption Act, 1988 (49 of 1988); or

(*n*) the Prevention of Terrorism Act, 2002 (15 of 2002),]

[5][shall be disqualified, where the convicted person is sentenced to—

(*i*) only fine, for a period of six years from the date of such conviction;

(*ii*) imprisonment, from the date of such conviction and shall continue to be disqualified for a further period of six years since his release.]

(*2*) A person convicted for the contravention of—

(*a*) any law providing for the prevention of hoarding or profiteering; or

(*b*) any law relating to the adulteration of food or drugs; or

(*c*) any provisions of the Dowry Prohibition Act, 1961 (28 of 1961);[6]***

[6]* * * * *

(*3*) A person convicted of any offence and sentenced to imprisonment for not less than two years [other than any offence referred to in sub-section (*1*) or sub-section (*2*)] shall be disqualified from the date of such conviction and shall continue to be disqualified for a further period of six years since his release.]

[7][(*4*)] Notwithstanding anything [8][in sub-section (*1*), sub-section (*2*) or sub-section (*3*)] a disqualification under either sub-section shall not, in the case of a person who on the date of the conviction is a member of Parliament or the Legislature of a State, take effect until three months have elapsed from that date or, if within that period an appeal or application for revision is brought in respect of the conviction or the sentence, until that appeal or application is disposed of by the court.

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1. Ins. by Act 42 of 1991, s. 8 (w.e.f. 18-9-1991).
2. Added by Act 21 of 1996, s. 3 (w.e.f.1-8-1996).
3. Ins. by s. 3, *ibid.* (w.e.f. 1-8-1996).
4. Ins. by Act 9 of 2003, s. 2 (w.e.f. 7-1-2003).
5. Subs. by s. 2, *ibid.* (w.e.f. 7-1-2003).
6. Cl. (*d*) omitted by s. 2, *ibid.* (w.e.f. 7-1-2003).
7. Sub-section (*3*) renumbered as sub-section (*4*) by Act 1 of 1989, s. 4 (w.e.f. 15-3-1989).
8. Subs. by s. 4, *ibid.*, for certain words (w.e.f.15-3-1989).

[1][**10A. Disqualification for failure to lodge account of election expenses.**—If the Election Commission is satisfied that a person—

(*a*) has failed to lodge an account of election expenses within the time and in the manner required by or under this Act; and

(*b*) has no good reason or justification for the failure,

the Election Commission shall, by order published in the Official Gazette, declare him to be disqualified and any such person shall be disqualified for a period of three years from the date of the order.

11. Removal or reduction of period of disqualification.—The Election Commission may, for reasons to be recorded, remove any disqualification under this Chapter [2][(except under section 8A)] or reduce the period of any such disqualification.

CHAPTER IV.—*Disqualifications for Voting*

[1][**11A. Disqualification arising out of conviction and corrupt practices.**—[3][(*1*)] If any person, after the commencement of this Act,—

[4]* * * is convicted of an offence punishable under section 171E or section 171F of the Indian Penal Code (45 of 1860), or under section 125 or section 135 or clause (*a*) of sub-section (*2*) of section 136 of this Act, [5]* * *

[6]* * * * *

he shall, for a period of six years from the date of the conviction or from the date on which the order takes effect, be is qualified for voting at any election.

[7][(*2*) Any person disqualified by a decision of the President under sub-section (*1*) of section 8A for any period shall be disqualified for the same period for voting at any election.

(*3*) The decision of the President on a petition submitted by any person under sub-section (*2*) of section 8A in respect of any disqualification for being chosen as, and for being, a member of either House of Parliament or of the Legislative Assembly or Legislative Council of a State shall, so far as may be, apply in respect of the disqualification for voting at any election incurred by him under clause (*b*) of sub-section (*1*) of section 11A of this Act as it stood immediately before the commencement of the Election Laws (Amendment) Act, 1975 (40 of 1975), as if such decision were a decision in respect of the said disqualification for voting also.]

[1][**11B. Removal of Disqualifications.**—The Election Commission may, for reasons to be recorded, remove [8][any disqualification under sub-section (*1*) of section 11A].

[9][PART III

NOTIFICATION OF GENERAL ELECTIONS

12. Notification for biennial election to the Council of States.—For the purpose of filling the seats of members of the Council of States retiring on the expiration of their term of office the President shall, by one or more notifications published in the Gazette of India on such date or dates as may be recommended by the Election Commission, call upon the elected members of the Legislative Assembly or, as the case may be, the members of the electoral college, of each State concerned to elect members in accordance with the provisions of this Act and of the rules and orders made thereunder :

Provided that no notification under this section shall be issued more than three months prior to the date on which the term of office of the retiring members is due to expire.

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1. Ins. by Act 47 of 1966, s. 20 (w.e.f. 14-12-1966).
2. Ins. by Act 40 of 1975, s. 3.
3. S. 11A re-numbered as sub-section (*1*) thereof by s. 4, *ibid*.
4. The brackets and letter "(*a*)" omitted by Act 38 of 1978, s. 3 and the Second Sch.
5. The word "or" omitted by s. 3 and the Second Sch. *ibid*.
6. Cl.(*b*) omitted by Act 40 of 1975, s. 4.
7. Ins. by s. 4, *ibid*.
8. Subs. by s. 5, *ibid*., for certain words.
9. Subs. by Act 27 of 1956, s. 7, for Part III (ss. 12 to 18).

(*b*) if the association or body is formed after such commencement, within thirty days next following the date of its formation.

(*3*) Every application under sub-section (*1*) shall be signed by the chief executive officer of the association or body (whether such chief executive officer is known as Secretary or by any other designation) and presented to the Secretary to the Commission or sent to such Secretary by registered post.

(*4*) Every such application shall contain the following particulars, namely:—

(*a*) the name of the association or body;

(*b*) the State in which its head office is situate;

(*c*) the address to which letters and other communications meant for it should be sent;

(*d*) the names of its president, secretary, treasurer and other office-bearers;

(*e*) the numerical strength of its members, and if there are categories of its members, the numerical strength in each category;

(*f*) whether it has any local units; if so, at what levels;

(*g*) whether it is represented by any member or members in either House of Parliament or of any State Legislature; if so, the number of such member or members.

(*5*) The application under sub-section (*1*) shall be accompanied by a copy of the memorandum or rules and regulations of the association or body, by whatever name called, and such memorandum or rules and regulations shall contain a specific provision that the association or body shall bear true faith and allegiance to the Constitution of India as by law established, and to the principles of socialism, secularism and democracy, and would uphold the sovereignty, unity and integrity of India.

(*6*) The Commission may call for such other particulars as it may deem fit from the association or body.

(*7*) After considering all the particulars as aforesaid in its possession and any other necessary and relevant factors and after giving the representatives of the association or body reasonable opportunity of being heard, the Commission shall decide either to register the association or body as a political party for the purposes of this Part, or not so to register it; and the Commission shall communicate its decision to the association or body:

Provided that no association or body shall be registered as a political party under this sub-section unless the memorandum or rules and regulations of such association or body conform to the provisions of sub-section (*5*).

(*8*) The decision of the Commission shall be final.

(*9*) After an association or body has been registered as a political party as aforesaid, any change in its name, head office, office-bearers, address or in any other material matters shall be communicated to the Commission without delay.]

[1][**29B. Political parties entitled to accept contribution.**—Subject to the provisions of the Companies Act, 1956 (1 of 1956), every political party may accept any amount of contribution voluntarily offered to it by any person or company other than a Government company:

Provided that no political party shall be eligible to accept any contribution from any foreign source defined under clause (*e*) of section 2 of the Foreign Contribution (Regulation) Act, 1976 (49 of 1976).

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1. Ins. by Act 46 of 2003, s. 2.

Explanation.—For the purposes of this section and section 29C,—

(*a*) "company" means a company as defined in section 3;

(*b*) "Government company" means a company within the meaning of section 617; and

(*c*) "contribution" has the meaning assigned to it under section 293A,

of the Companies Act, 1956 (1 of 1956) and includes any donation or subscription offered by any person to a political party; and

(*d*) "person" has the meaning assigned to it under clause (*31*) of section 2 of the Income-tax Act, 1961 (43 of 1961), but does not include Government company, local authority and every artificial juridical person wholly or partially funded by the Government.

29C. Declaration of donation received by the political parties.—(*1*) The treasurer of a political party or any other person authorised by the political party in this behalf shall, in each financial year, prepare a report in respect of the following, namely:—

(*a*) the contribution in excess of twenty thousand rupees received by such political party from any person in that financial year;

(*b*) the contribution in excess of twenty thousand rupees received by such political party from companies other than Government companies in that financial year.

(*2*) The report under sub-section (*1*) shall be in such form as may be prescribed.

(*3*) The report for a financial year under sub-section (*1*) shall be submitted by the treasurer of a political party or any other person authorised by the political party in this behalf before the due date for furnishing a return of its income of that financial year under section 139 of the Income-tax Act, 1961 (43 of 1961), to the Election Commission.

(*4*) Where the treasurer of any political party or any other person authorised by the political party in this behalf fails to submit a report under sub-section (*3*) then, notwithstanding anything contained in the Income-tax Act, 1961 (43 of 1961), such political party shall not be entitled to any tax relief under that Act.]

PART V
CONDUCT OF ELECTIONS

CHAPTER I.—*Nomination of Candidates*

[1][**30. Appointment of dates for nominations, etc**.—As soon as the notification calling upon a constituency to elect a member or members is issued, the Election Commission shall, by notification in the Official Gazette, appoint —

(*a*) the last date for making nominations, which shall be the [2][seventh day] after the date of publication of the first-mentioned notification or, if that day is a public holiday, the next succeeding day which is not a public holiday;

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1. Subs. by Act 27 of 1956, s. 14, for s. 30.
2. Subs. by Act 40 of 1961, s. 7, for "tenth day" (w.e.f. 20-9-1961).

(*b*) in the case of a general election to the Legislative Assembly of a State (whether or not held simultaneously from all Assembly constituencies), from more than two Assembly constituencies in that State;

(*c*) in the case of a biennial election to the Legislative Council of a State having such Council, from more than two Council constituencies in the State;

(*d*) in the case of a biennial election to the Council of States for filling two or more seats allotted to a State, for filling more than two such seats;

(*e*) in the case of bye-elections to the House of the People from two or more Parliamentary constituencies which are held simultaneously, from more than two such Parliamentary constituencies;

(*f*) in the case of bye-elections to the Legislative Assembly of a State from two or more Assembly constituencies which are held simultaneously, from more than two such Assembly constituencies;

(*g*) in the case of bye-elections to the Council of States for filling two or more seats allotted to a State, which are held simultaneously, for filling more than two such seats;

(*h*) in the case of bye-elections to the Legislative Council of a State having such Council from two or more Council constituencies which are held simultaneously, from more than two such Council constituencies.

Explanation.— For the purposes of this sub-section, two or more bye-elections shall be deemed to be held simultaneously where the notification calling such bye-elections are issued by the Election Commission under section 147, section 149, section 150 or, as the case may be, section 151 on the same date.]

[1][**33A. Right to information.—**(*1*) A candidate shall, apart from any information which he is required to furnish, under this Act or the rules made thereunder, in his nomination paper delivered under sub-section (*1*) or section 33, also furnish the information as to whether –

(*i*) he is accused of any offence punishable with imprisonment for two years or more in a pending case in which a charge has been framed by the court of competent jurisdiction;

(*ii*) he has been convicted of an offence [other than any offence referred to in sub-section (*1*) or sub-section (*2*), or covered in sub-section (*3*), of section 8] and sentenced to imprisonment for one year or more.

(*2*) The candidate of his proposer, as the case may be, shall, at the time of delivering to the returning officer the nomination paper under sub-section (*1*) of section 33, also deliver to him an affidavit sworn by the candidate in a prescribed form very fine the information specified in sub-section (*1*).

(*3*) The returning officer shall, as soon as may be after the furnishing of information to him under sub-section (*1*), display the aforesaid information by affixing a copy of the affidavit, delivered under sub-section (*2*), at a conspicuous place at his office for the information of the electors relating to a constituency for which the nomination paper is delivered.]

[2][**33B. Candidate to furnish information only under the Act and the rules.—**Notwithstanding anything contained in any judgment, decree or order of any court or any direction, order or any other instruction issued by the Election Commission, no candidate shall be liable to disclose or furnish any such information, in respect of his election which is not required to be disclosed or furnished under this Act or the rules made thereunder.]

34. Deposits.—[3][(*1*) A candidate shall not be deemed to be duly nominated for election from a constituency unless he deposits or causes to be deposited,—

(*a*) in the case of an election from a Parliamentary constituency, [4][a sum of twenty-five thousand rupees or where the candidate is a member of a Scheduled Caste or Scheduled Tribe, a sum of twelve thousand five hundred rupees] ; and

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1. Ins. by Act 72 of 2002, s. 2 (w.e.f. 24-8-2002).
2. Subs. by s. 3, *ibid.* (w.e.f. 2-5-2002).
3. Subs. by Act 21 of 1996, s. 7, for sub-section (*1*) (w.e.f. 1-8-1996).
4. Subs. by Act 41 of 2009, s.5, for certain words (w.e.f. 1-2-2010).

CHAPTER VIII.—*Election Expenses*

[1][**76. Application of Chapter**.—This Chapter shall apply only to the elections to the House of the People and to the Legislative Assembly of a State.

77. Account of election expenses and maximum thereof.—(*1*) Every candidate at an election shall, either by himself or by his election agent, keep a separate and correct account of all expenditure in connection with the election incurred or authorized by him or by his election agent between [2][the date on which he has been nominated] and the date of declaration of the result thereof, both dates inclusive.

[3][*Explanation* 1.—For the removal of doubts, it is hereby declared that—

(*a*) the expenditure incurred by leaders of a political party on account of travel by air or by any other means of transport for propagating programme of the political party shall not be deemed to be the expenditure in connection with the election incurred or authorised by a candidate of that political party or his election agent for the purposes of this sub-section.

(*b*) any expenditure incurred in respect of any arrangements made, facilities provided or any other act or thing done by any person in the service of the Government and belonging to any of the classes mentioned in clause (*7*) of section 123 in the discharge or purported discharge of his official duty as mentioned in the proviso to that clause shall not be deemed to be expenditure in connection with the election incurred or authorised by a candidate or by his election agent for the purposes of this sub-section.

Explanation 2.—For the purposes of clause (*a*) of *Explanation* 1, the expression "leaders of a political party", in respect of any election, means,—

(*i*) where such political party is a recognised political party, such persons not exceeding forty in number, and

(*ii*) where such political party is other than a recognised political party, such persons not exceeding twenty in number,

whose names have been communicated to the Election Commission and the Chief Electoral Officers of the States by the political party to be leaders for the purposes of such election, within a period of seven days from the date of the notification for such election published in the Gazette of India or Official Gazette of the State, as the case may be, under this Act:

Provided that a political party may, in the case where any of the persons referred to in clause (*i*) or, as the case may be, in clause (*ii*) dies or ceases to be a member of such political party, by further communication to the Election Commission and the Chief Electoral Officers of the States, substitute new name, during the period ending immediately before forty-eight hours ending with the hour fixed for the conclusion of the last poll for such election, for the name of such person died or ceased to be a member, for the purposes of designating the new leader in his place.]

(*2*) The account shall contain such particulars, as may be prescribed.

(*3*) The total of the said expenditure shall not exceed such amount as may be prescribed.

78. Lodging of account with the district election officer.—[4][(*1*)] Every contesting candidate at an election shall, within thirty days from the date of election of the returned candidate or, if there are more than one returned candidate at the election and the dates of their election are different, the later of those two dates, lodge with the [5][district election officer] an account of his election expenses which shall be a true copy of the account kept by him or by his election agent under section 77.]

[6]* * * * *

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1. Subs. by Act 27 of 1956, s. 42, for ss. 76 to 78.
2. Subs. by Act 40 of 1975, s. 6, for certain words (retrospectively).
3. Subs. by Act 46 of 2003, s. 4, for the *Explanation*.
4. S. 78 re-numbered as sub-section (*1*) of that section by Act 47 of 1966, s. 36.
5. Subs. by Act 47 of 1966, s. 36, for "returning officer".
6. Ins. by s. 36, *ibid*. (w.e.f. 14-12-1966) and omitted by Act 2 of 2004, s. 3(*b*).

(*2*) For the purposes of clause (*7*), a person shall be deemed to assist in the furtherance of the prospects of a candidate's election if he acts as an election agent [1]* * * of that candidate.]

[2][(*3*) For the purposes of clause (*7*), notwithstanding anything contained in any other law, the publication in the Official Gazette of the appointment, resignation, termination of service, dismissal or removal from service of a person in the service of the Central Government (including a person serving in connection with the administration of a Union territory) or of a State Government shall be conclusive proof—

(*i*) of such appointment, resignation, termination of service, dismissal or removal from service, as the case may be, and

(*ii*) where the date of taking effect of such appointment, resignation, termination of service, dismissal or removal from service, as the case may be, is stated in such publication, also of the fact that such person was appointed with effect from the said date, or in the case of resignation, termination of service, dismissal or removal from service, such person ceased to be in such service with effect from the said date.]

[3][(*4*) For the purposes of clause (*8*), "booth capturing" shall have the same meaning as in section 135A.]

CHAPTER III.—*Electoral offences*

[4][**125. Promoting enmity between classes in connection with election**.—Any person who in connection with an election under this Act promotes or attempts to promote on grounds of religion, race, caste, community or language, feelings of enmity or hatred, between different classes of the citizens of India shall be punishable, with imprisonment for a term which may extend to three years, or with fine, or with both.]

[5][**125A. Penalty for filing false affidavit, etc.—**A candidate who himself or through his proposer, with intent to be elected in an election,—

(*i*) fails to furnish information relating to sub-section (*1*) of section 33A; or

(*ii*) give false information which he knows or has reason to believe to be false; or

(*iii*) conceals any information,

in his nomination paper delivered under sub-section (*1*) of section 33 or in his affidavit which is required to be delivered under sub-section (*2*) of section 33A, as the case may be, shall, notwithstanding anything contained in any other law for the time being in force, be punishable with imprisonment for a term which may extend to six months, or with fine, or with both.]

[6][**126. Prohibition of public meetings during period of forty-eight hours ending with hour fixed for conclusion of poll.—**(*1*) No person shall—

(*a*) convene, hold or attend, join or address any public meeting or procession in connection with an election; or

(*b*) display to the public any election matter by means of cinematograph, television or other similar apparatus; or

(*c*) propagate any election matter to the public by holding, or by arranging the holding of, any musical concert or any theatrical performance or any other entertainment or amusement with a view to attracting the members of the public thereto,

in any polling area during the period of forty-eight hours ending with the fixed for the conclusion of the poll for any election in the polling area.

(*2*) Any person who contravenes the provisions of sub-section (*1*) shall be punishable with imprisonment for a term which may extend to two years, or with fine, or with both.

(*3*) In this section, the expression "election matter" means any matter intended or calculated to influence or affect the result of an election.].

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1. The words "or a polling agent or a counting agent" omitted by Act 47 of 1966, s. 53 (w.e.f. 14-12-1966).
2. Added by Act 40 of 1975, s. 8 (retrospectively).
3. Ins. by Act 1 of 1989, s.13 (w.e.f. 15-3-1989).
4. Ins. by Act 40 of 1961, s. 24 (w.e.f. 20-9-1961).
5. Ins. by Act 72 of 2002, s.5 (w.e.f. 24-8-2002).
6. Subs. by Act 21 of 1996, s. 10, for s. 126 (w.e.f. 1-8-1969).

THE RIGHT TO INFORMATION ACT, 2005

No. 22 of 2005

[15th June, 2005]

An Act to provide for setting out the practical regime of right to information for citizens to secure access to information under the control of public authorities, in order to promote transparency and accountability in the working of every public authority, the constitution of a Central Information Commission and State Information Commissions and for matters connected therewith or incidental thereto.

Whereas the Constitution of India has established democratic Republic;

And whereas democracy requires an informed citizenry and transparency of information which are vital to its functioning and also to contain corruption and to hold Governments and their instrumentalities accountable to the governed;

And whereas revelation of information in actual practice is likely to conflict with other public interests including efficient operations of the Governments, optimum use of limited fiscal resources and the preservation of confidentiality of sensitive information;

And whereas it is necessary to harmonise these conflicting interests while preserving the paramountcy of the democratic ideal;

Now, therefore, it is expedient to provide for furnishing certain information to citizens who desire to have it.

Be it enacted by Parliament in the Fifty-sixth Year of the Republic of India as follows:—

CHAPTER I

Preliminary

1 (1) This Act may be called the Right to Information Act, 2005.

(2) It extends to the whole of India except the State of Jammu and Kashmir.

(3) The provisions of sub-section (*1*) of section 4, sub-sections (*1*) and (*2*) of section 5, sections 12, 13, 15,16, 24 , 27 and 28 shall come into force at once, and the remaining provisions of this Act shall come into force on the one hundred and twentieth day of its enactment.

2 In this Act, unless the context otherwise requires,—

(a) "appropriate Government" means in relation to a public authority which is established, constituted, owned, controlled or substantially financed by funds provided directly or indirectly—

(i) by the Central Government or the Union territory administration, the Central Government;

(ii) by the State Government, the State Government;

(b) "Central Information Commission" means the Central Information Commission constituted under sub-section (*1*) of section 12;

(c) "Central Public Information Officer" means the Central Public Information Officer designated under sub-section (*1*) and includes a Central Assistant Public Information Officer designated as such under sub-section (*2*) of section 5;

(d) "Chief Information Commissioner" and "Information Commissioner" mean the Chief Information Commissioner and Information Commissioner appointed under sub-section (*3*) of section 12;

(e) "competent authority" means—

(i) the Speaker in the case of the House of the People or the Legislative Assembly of a State or a Union territory having such Assembly and the Chairman in the case of the Council of States or Legislative Council of a State;

(ii) the Chief Justice of India in the case of the Supreme Court;

(iii) the Chief Justice of the High Court in the case of a High Court;

(iv) the President or the Governor, as the case may be, in the case of other authorities established or constituted by or under the Constitution;

(v) the administrator appointed under article 239 of the Constitution;

(f) "information" means any material in any form, including records, documents, memos, e-mails, opinions, advices, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models, data material held in any electronic form and information relating to any private body which can be accessed by a public authority under any other law for the time being in force;

(g) "prescribed" means prescribed by rules made under this Act by the appropriate Government or the competent authority, as the case may be;

(h) "public authority" means any authority or body or institution of self- government established or constituted—

(a) by or under the Constitution;

(b) by any other law made by Parliament;

(c) by any other law made by State Legislature;

(d) by notification issued or order made by the appropriate Government, and includes any—

(i) body owned, controlled or substantially financed;

(ii) non-Government organization substantially financed, directly or indirectly by funds provided by the appropriate Government;

(i) "record" includes—

(a) any document, manuscript and file;

(b) any microfilm, microfiche and facsimile copy of a document;

(c) any reproduction of image or images embodied in such microfilm (whether enlarged or not); and

(d) any other material produced by a computer or any other device;

(j) "right to information" means the right to information accessible under this Act which is held by or under the control of any public authority and includes the right to—

(i) inspection of work, documents, records;

(ii) taking notes, extracts or certified copies of documents or records;

(iii) taking certified samples of material;

(iv) obtaining information in the form of diskettes, floppies, tapes, video cassettes or in any other electronic mode or through printouts where such information is stored in a computer or in any other device;

(k) "State Information Commission" means the State Information Commission constituted under sub-section (*1*) of section 15;

(l) "State Chief Information Commissioner" and "State Information Commissioner" mean the State Chief Information Commissioner and the State Information Commissioner appointed under sub-section (*3*) of section 15;

(m) "State Public Information Officer" means the State Public Information Officer designated under sub-section (*1*) and includes a State Assistant Public Information Officer designated as such under sub-section (*2*) of section 5;

(n) "third party" means a person other than the citizen making a request for information and includes a public authority.

CHAPTER II

Right to information and obligations of public authorities

3 Subject to the provisions of this Act, all citizens shall have the right to information.

4 (1) Every public authority shall—

(a) maintain all its records duly catalogued and indexed in a manner and the form which facilitates the right to information under this Act and ensure that all records that are appropriate to be computerised are, within a reasonable time and subject to availability of resources, computerised and connected through a network all over the country on different systems so that access to such records is facilitated;

(b) publish within one hundred and twenty days from the enactment of this Act,—

(i) the particulars of its organisation, functions and duties;

(ii) the powers and duties of its officers and employees;

(iii) the procedure followed in the decision making process, including channels of supervision and accountability;

(iv) the norms set by it for the discharge of its functions;

(v) the rules, regulations, instructions, manuals and records, held by it or under its control or used by its employees for discharging its functions;

(vi) a statement of the categories of documents that are held by it or under its control;

(vii) the particulars of any arrangement that exists for consultation with, or representation by, the members of the public in relation to the formulation of its policy or implementation thereof;

(viii) a statement of the boards, councils, committees and other bodies consisting of two or more persons constituted as its part or for the purpose of its advice, and as to whether meetings of those boards, councils, committees and other bodies are open to the public, or the minutes of such meetings are accessible for public;

(ix) a directory of its officers and employees;

(x) the monthly remuneration received by each of its officers and employees, including the system of compensation as provided in its regulations;

(xi) the budget allocated to each of its agency, indicating the particulars of all plans, proposed expenditures and reports on disbursements made;

(xii) the manner of execution of subsidy programmes, including the amounts allocated and the details of beneficiaries of such programmes;

(xiii) particulars of recipients of concessions, permits or authorisations granted by it;

(xiv) details in respect of the information, available to or held by it, reduced in an electronic form;

(xv) the particulars of facilities available to citizens for obtaining information, including the working hours of a library or reading room, if maintained for public use;

(xvi) the names, designations and other particulars of the Public Information Officers;

(xvii) such other information as may be prescribed and thereafter update these publications every year;

(c) publish all relevant facts while formulating important policies or announcing the decisions which affect public;

(d) provide reasons for its administrative or quasi-judicial decisions to affected persons.

(2) It shall be a constant endeavour of every public authority to take steps in accordance with the requirements of clause (b) of sub-section (1) to provide as much information suo motu to the public at regular intervals through various means of communications, including internet, so that the public have minimum resort to the use of this Act to obtain information.

(3) For the purposes of sub-section (1), every information shall be disseminated widely and in such form and manner which is easily accessible to the public.

(4) All materials shall be disseminated taking into consideration the cost effectiveness, local language and the most effective method of communication in that local area and the information should be easily accessible, to the extent possible in electronic format with the Central Public Information Officer or State Public Information Officer, as the case may be, available free or at such cost of the medium or the print cost price as may be prescribed.

Explanation.—For the purposes of sub-sections (3) and (4), "disseminated" means making known or communicated the information to the public through notice boards, newspapers, public announcements, media broadcasts, the internet or any other means, including inspection of offices of any public authority.

5 (1) Every public authority shall, within one hundred days of the enactment of this Act, designate as many officers as the Central Public Information Officers or State Public Information Officers, as the case may be, in all administrative units or offices under it as may be necessary to provide information to persons requesting for the information under this Act.

(2) Without prejudice to the provisions of sub-section (1), every public authority shall designate an officer, within one hundred days of the enactment of this Act, at each sub-divisional level or other sub-district level as a Central Assistant Public Information Officer or a State Assistant Public Information Officer, as the case may be, to receive the applications for information or appeals under this Act for forwarding the same forthwith to the Central Public Information Officer or the State Public Information Officer or senior officer specified under sub-section (1) of section 19 or the Central Information Commission or the State Information Commission, as the case may be:

Provided that where an application for information or appeal is given to a Central Assistant Public Information Officer or a State Assistant Public Information Officer, as the case may be, a period of five days shall be added in computing the period for response specified under sub-section (1) of section 7.

(3) Every Central Public Information Officer or State Public Information Officer, as the case may be, shall deal with requests from persons seeking information and render reasonable assistance to the persons seeking such information.

(4) The Central Public Information Officer or State Public Information Officer, as the case may be, may seek the assistance of any other officer as he or she considers it necessary for the proper discharge of his or her duties.

(5) Any officer, whose assistance has been sought under sub-section (4), shall render all assistance to the Central Public Information Officer or State Public Information Officer, as the case may be, seeking his or her assistance and for the purposes of any contravention of the provisions of this Act, such other officer shall be treated as a Central Public Information Officer or State Public Information Officer, as the case may be.

6 (1) A person, who desires to obtain any information under this Act, shall make a request in writing or through electronic means in English or Hindi or in the official language of the area in which the application is being made, accompanying such fee as may be prescribed, to—

(a) the Central Public Information Officer or State Public Information Officer, as the case may be, of the concerned public authority;

(b) the Central Assistant Public Information Officer or State Assistant Public Information Officer, as the case may be,

specifying the particulars of the information sought by him or her:

Provided that where such request cannot be made in writing, the Central Public Information Officer or State Public Information Officer, as the case may be, shall render all reasonable assistance to the person making the request orally to reduce the same in writing.

(2) An applicant making request for information shall not be required to give any reason for requesting the information or any other personal details except those that may be necessary for contacting him.

(3) Where an application is made to a public authority requesting for an information,—

(i) which is held by another public authority; or

(ii) the subject matter of which is more closely connected with the functions of another public authority,

the public authority, to which such application is made, shall transfer the application or such part of it as may be appropriate to that other public authority and inform the applicant immediately about such transfer:

Provided that the transfer of an application pursuant to this sub-section shall be made as soon as practicable but in no case later than five days from the date of receipt of the application.

7 (1) Subject to the proviso to sub-section (2) of section 5 or the proviso to sub-section (3) of section 6, the Central Public Information Officer or State Public Information Officer, as the case may be, on receipt of a request under section 6 shall, as expeditiously as possible, and in any case within thirty days of the receipt of the request, either provide the information on payment of such fee as may be prescribed or reject the request for any of the reasons specified in sections 8 and 9:

Provided that where the information sought for concerns the life or liberty of a person, the same shall be provided within forty-eight hours of the receipt of the request.

(2) If the Central Public Information Officer or State Public Information Officer, as the case may be, fails to give decision on the request for information within the period specified under sub-section (1), the Central Public Information Officer or State Public Information Officer, as the case may be, shall be deemed to have refused the request.

(3) Where a decision is taken to provide the information on payment of any further fee representing the cost of providing the information, the Central Public Information Officer or State Public Information Officer, as the case may be, shall send an intimation to the person making the request, giving—

(a) the details of further fees representing the cost of providing the information as determined by him, together with the calculations made to arrive at the amount in accordance with fee prescribed under sub-section (1), requesting him to deposit that fees, and the period intervening between the despatch of the said intimation and payment of fees shall be excluded for the purpose of calculating the period of thirty days referred to in that sub-section;

(b) information concerning his or her right with respect to review the decision as to the amount of fees charged or the form of access provided, including the particulars of the appellate authority, time limit, process and any other forms.

(4) Where access to the record or a part thereof is required to be provided under this Act and the person to whom access is to be provided is sensorily disabled, the Central Public Information Officer or State Public Information Officer, as the case may be, shall provide assistance to enable access to the information, including providing such assistance as may be appropriate for the inspection.

(5) Where access to information is to be provided in the printed or in any electronic format, the applicant shall, subject to the provisions of sub-section (6), pay such fee as may be prescribed:

Provided that the fee prescribed under sub-section (1) of section 6 and sub-sections (1) and (5) of section 7 shall be reasonable and no such fee shall be charged from the persons who are of below poverty line as may be determined by the appropriate Government.

(6) Notwithstanding anything contained in sub-section (5), the person making request for the information shall be provided the information free of charge where a public authority fails to comply with the time limits specified in sub-section (1).

(7) Before taking any decision under sub-section (1), the Central Public Information Officer or State Public Information Officer, as the case may be, shall take into consideration the representation made by a third party under section 11.

(8) Where a request has been rejected under sub-section (1), the Central Public Information Officer or State Public Information Officer, as the case may be, shall communicate to the person making the request,—

(i) the reasons for such rejection;

(ii) the period within which an appeal against such rejection may be preferred; and

(iii) the particulars of the appellate authority.

(9) An information shall ordinarily be provided in the form in which it is sought unless it would disproportionately divert the resources of the public authority or would be detrimental to the safety or preservation of the record in question.

8 (1) Notwithstanding anything contained in this Act, there shall be no obligation to give any citizen,—

(a) information, disclosure of which would prejudicially affect the sovereignty and integrity of India, the security, strategic, scientific or economic interests of the State, relation with foreign State or lead to incitement of an offence;

(b) information which has been expressly forbidden to be published by any court of law or tribunal or the disclosure of which may constitute contempt of court;

(c) information, the disclosure of which would cause a breach of privilege of Parliament or the State Legislature;

(d) information including commercial confidence, trade secrets or intellectual property, the disclosure of which would harm the competitive position of a third party, unless the competent authority is satisfied that larger public interest warrants the disclosure of such information;

(e) information available to a person in his fiduciary relationship, unless the competent authority is satisfied that the larger public interest warrants the disclosure of such information;

(f) information received in confidence from foreign Government;

(g) information, the disclosure of which would endanger the life or physical safety of any person or identify the source of information or assistance given in confidence for law enforcement or security purposes;

(h) information which would impede the process of investigation or apprehension or prosecution of offenders;

(i) cabinet papers including records of deliberations of the Council of Ministers, Secretaries and other officers:

Provided that the decisions of Council of Ministers, the reasons thereof, and the material on the basis of which the decisions were taken shall be made public after the decision has been taken, and the matter is complete, or over:

Provided further that those matters which come under the exemptions specified in this section shall not be disclosed;

(j) information which relates to personal information the disclosure of which has no relationship to any public activity or interest, or which would cause unwarranted invasion of the privacy of the individual unless the Central Public Information Officer or the State Public Information Officer or the appellate

authority, as the case may be, is satisfied that the larger public interest justifies the disclosure of such information:

Provided that the information which cannot be denied to the Parliament or a State Legislature shall not be denied to any person.

(2) Notwithstanding anything in the Official Secrets Act, 1923 nor any of the exemptions permissible in accordance with sub-section (1), a public authority may allow access to information, if public interest in disclosure outweighs the harm to the protected interests.

(3) Subject to the provisions of clauses (a), (c) and (i) of sub-section (1), any information relating to any occurrence, event or matter which has taken place, occurred or happened twenty years before the date on which any request is made under secton 6 shall be provided to any person making a request under that section:

Provided that where any question arises as to the date from which the said period of twenty years has to be computed, the decision of the Central Government shall be final, subject to the usual appeals provided for in this Act.

9 Without prejudice to the provisions of section 8, a Central Public Information Officer or a State Public Information Officer, as the case may be, may reject a request for information where such a request for providing access would involve an infringement of copyright subsisting in a person other than the State.

10 (1) Where a request for access to information is rejected on the ground that it is in relation to information which is exempt from disclosure, then, notwithstanding anything contained in this Act, access may be provided to that part of the record which does not contain any information which is exempt from disclosure under this Act and which can reasonably be severed from any part that contains exempt information.

(2) Where access is granted to a part of the record under sub-section (1), the Central Public Information Officer or State Public Information Officer, as the case may be, shall give a notice to the applicant, informing—

(a) that only part of the record requested, after severance of the record containing information which is exempt from disclosure, is being provided;

(b) the reasons for the decision, including any findings on any material question of fact, referring to the material on which those findings were based;

(c) the name and designation of the person giving the decision;

(d) the details of the fees calculated by him or her and the amount of fee which the applicant is required to deposit; and

(e) his or her rights with respect to review of the decision regarding non-disclosure of part of the information, the amount of fee charged or the form of access provided, including the particulars of the senior officer specified under sub-section (1) of section 19 or the Central Information Commission or the State Information Commission, as the case may be, time limit, process and any other form of access.

11 (1) Where a Central Public Information Officer or a State Public Information Officer, as the case may be, intends to disclose any information or record, or part thereof on a request made under this Act, which relates to or has been supplied by a third party and has been treated as confidential by that third party, the Central Public Information Officer or State Public Information Officer, as the case may be, shall, within five days from the receipt of the request, give a written notice to such third party of the request and of the fact that the Central Public Information Officer or State Public Information Officer, as the case may be, intends to disclose the information or record, or part thereof, and invite the third party to make a submission in writing or orally, regarding whether the information should be disclosed, and such submission of the third party shall be kept in view while taking a decision about disclosure of information:

Provided that except in the case of trade or commercial secrets protected by law, disclosure may be allowed if the public interest in disclosure outweighs in importance any possible harm or injury to the interests of such third party.

(2) Where a notice is served by the Central Public Information Officer or State Public Information Officer, as the case may be, under sub-section (1) to a third party in respect of any information or record or part thereof, the third party shall, within ten days from the date of receipt of such notice, be given the opportunity to make representation against the proposed disclosure.

(3) Notwithstanding anything contained in section 7, the Central Public Information Officer or State Public Information Officer, as the case may be, shall, within forty days after receipt of the request under section 6, if the third party has been given an opportunity to make representation under sub-section (2), make a decision as to whether or not to disclose the information or record or part thereof and give in writing the notice of his decision to the third party.

(4) A notice given under sub-section (3) shall include a statement that the third party to whom the notice is given is entitled to prefer an appeal under section 19 against the decision.

CHAPTER III

The Central Information Commission

12 (1) The Central Government shall, by notification in the Official Gazette, constitute a body to be known as the Central Information Commission to exercise the powers conferred on, and to perform the functions assigned to, it under this Act.

(2) The Central Information Commission shall consist of—

(a) the Chief Information Commissioner; and

(b) such number of Central Information Commissioners, not exceeding ten, as may be deemed necessary.

(3) The Chief Information Commissioner and Information Commissioners shall be appointed by the President on the recommendation of a committee consisting of—

(i) the Prime Minister, who shall be the Chairperson of the committee;

(ii) the Leader of Opposition in the Lok Sabha; and

(iii) a Union Cabinet Minister to be nominated by the Prime Minister.

Explanation.—For the purposes of removal of doubts, it is hereby declared that where the Leader of Opposition in the House of the People has not been recognised as such, the Leader of the single largest group in opposition of the Government in the House of the People shall be deemed to be the Leader of Opposition.

(4) The general superintendence, direction and management of the affairs of the Central Information Commission shall vest in the Chief Information Commissioner who shall be assisted by the Information Commissioners and may exercise all such powers and do all such acts and things which may be exercised or done by the Central Information Commission autonomously without being subjected to directions by any other authority under this Act.

(5) The Chief Information Commissioner and Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance.

(6) The Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of the Legislature of any State or Union territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.

(7) The headquarters of the Central Information Commission shall be at Delhi and the Central Information Commission may, with the previous approval of the Central Government, establish offices at other places in India.

13 (1) The Chief Information Commissioner shall hold office for a term of five years from the date on which he enters upon his office and shall not be eligible for reappointment:

Provided that no Chief Information Commissioner shall hold office as such after he has attained the age of sixty-five years.

(2) Every Information Commissioner shall hold office for a term of five years from the date on which he enters upon his office or till he attains the age of sixty-five years, whichever is earlier, and shall not be eligible for reappointment as such Information Commissioner:

Provided that every Information Commissioner shall, on vacating his office under this sub-section be eligible for appointment as the Chief Information Commissioner in the manner specified in sub-section (3) of section 12:

Provided further that where the Information Commissioner is appointed as the Chief Information Commissioner, his term of office shall not be more than five years in aggregate as the Information Commissioner and the Chief Information Commissioner.

(3) The Chief Information Commissioner or an Information Commissioner shall before he enters upon his office make and subscribe before the President or some other person appointed by him in that behalf, an oath or affirmation according to the form set out for the purpose in the First Schedule.

(4) The Chief Information Commissioner or an Information Commissioner may, at any time, by writing under his hand addressed to the President, resign from his office:

Provided that the Chief Information Commissioner or an Information Commissioner may be removed in the manner specified under section 14.

(5) The salaries and allowances payable to and other terms and conditions of service of —

(a) the Chief Information Commissioner shall be the same as that of the Chief Election Commissioner;

(b) an Information Commissioner shall be the same as that of an Election Commissioner:

Provided that if the Chief Information Commissioner or an Information Commissioner, at the time of his appointment is, in receipt of a pension, other than a disability or wound pension, in respect of any previous service under the Government of India or under the Government of a State, his salary in respect of the service as the Chief Information Commissioner or an Information Commissioner shall be reduced by the amount of that pension including any portion of pension which was commuted and pension equivalent of other forms of retirement benefits excluding pension equivalent of retirement gratuity:

Provided further that if the Chief Information Commissioner or an Information Commissioner if, at the time of his appointment is, in receipt of retirement benefits in respect of any previous service rendered in a Corporation established by or under any Central Act or State Act or a Government company owned or controlled by the Central Government or the State Government, his salary in respect of the service as the Chief Information Commissioner or an Information Commissioner shall be reduced by the amount of pension equivalent to the retirement benefits:

Provided also that the salaries, allowances and other conditions of service of the Chief Information Commissioner and the Information Commissioners shall not be varied to their disadvantage after their appointment.

(6) The Central Government shall provide the Chief Information Commissioner and the Information Commissioners with such officers and employees as may be necessary for the efficient performance of their functions under this Act, and the salaries and allowances payable to and the terms and conditions of service of the officers and other employees appointed for the purpose of this Act shall be such as may be prescribed.

14 (1) Subject to the provisions of sub-section (3), the Chief Information Commissioner or any Information Commissioner shall be removed from his office only by order of the President on the ground of proved misbehaviour or incapacity after the Supreme Court, on a reference made to it by the President, has, on inquiry, reported that the Chief Information Commissioner or any Information Commissioner, as the case may be, ought on such ground be removed.

(2) The President may suspend from office, and if deem necessary prohibit also from attending the office during inquiry, the Chief Information Commissioner or Information Commissioner in respect of whom a reference has been made to the Supreme Court under sub-section (1) until the President has passed orders on receipt of the report of the Supreme Court on such reference.

(3) Notwithstanding anything contained in sub-section (1), the President may by order remove from office the Chief Information Commissioner or any Information Commissioner if the Chief Information Commissioner or a Information Commissioner, as the case may be,—

(a) is adjudged an insolvent; or

(b) has been convicted of an offence which, in the opinion of the President, involves moral turpitude; or

(c) engages during his term of office in any paid employment outside the duties of his office; or

(d) is, in the opinion of the President, unfit to continue in office by reason of infirmity of mind or body; or

(e) has acquired such financial or other interest as is likely to affect prejudicially his functions as the Chief Information Commissioner or a Information Commissioner.

(4) If the Chief Information Commissioner or a Information Commissioner in any way, concerned or interested in any contract or agreement made by or on behalf of the Government of India or participates in any way in the profit thereof or in any benefit or emolument arising there from otherwise than as a member and in common with the other members of an incorporated company, he shall, for the purposes of sub-section (1), be deemed to be guilty of misbehavior.

CHAPTER IV

The State Information Commission

15 (1) Every State Government shall, by notification in the Official Gazette, constitute a body to be known as the ..... (name of the State) Information Commission to exercise the powers conferred on, and to perform the functions assigned to, it under this Act.

(2) The State Information Commission shall consist of—

(a) the State Chief Information Commissioner, and

(b) such number of State Information Commissioners, not exceeding ten, as may be deemed necessary.

(3) The State Chief Information Commissioner and the State Information Commissioners shall be appointed by the Governor on the recommendation of a committee consisting of—

(i) the Chief Minister, who shall be the Chairperson of the committee;

(ii) the Leader of Opposition in the Legislative Assembly; and

(iii) a Cabinet Ministrer to be nominated by the Chief Minister.

Explanation.—For the purposes of removal of doubts, it is hereby declared that where the Leader of Opposition in the Legislative Assembly has not been recognised as such, the Leader of the single largest group in opposition of the Government in the Legislative Assembly shall be deemed to be the Leader of Opposition.

(4) The general superintendence, direction and management of the affairs of the State Information Commission shall vest in the State Chief Information Commissioner who shall be assisted by the State Information Commissioners and may exercise all such powers and do all such acts and things which may be exercised or done by the State Information Commission autonomously without being subjected to directions by any other authority under this Act.

(5) The State Chief Information Commissioner and the State Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance.

(6) The State Chief Information Commissioner or a State Information Commissioner shall not be a Member of Parliament or Member of the Legislature of any State or Union territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.

(7) The headquarters of the State Information Commission shall be at such place in the State as the State Government may, by notification in the Official Gazette, specify and the State Information Commission may, with the previous approval of the State Government, establish offices at other places in the State.

16 (1) The State Chief Information Commissioner shall hold office for a term of five years from the date on which he enters upon his office and shall not be eligible for reappointment:

Provided that no State Chief Information Commissioner shall hold office as such after he has attained the age of sixty-five years.

(2) Every State Information Commissioner shall hold office for a term of five years from the date on which he enters upon his office or till he attains the age of sixty-five years, whichever is earlier, and shall not be eligible for reappointment as such State Information Commissioner:

Provided that every State Information Commissioner shall, on vacating his office under this sub-section, be eligible for appointment as the State Chief Information Commissioner in the manner specified in sub-section (3) of section 15:

Provided further that where the State Information Commissioner is appointed as the State Chief Information Commissioner, his term of office shall not be more than five years in aggregate as the State Information Commissioner and the State Chief Information Commissioner.

(3) The State Chief Information Commissioner or a State Information Commissioner, shall before he enters upon his office make and subscribe before the Governor or some other person appointed by him in that behalf, an oath or affirmation according to the form set out for the purpose in the First Schedule.

(4) The State Chief Information Commissioner or a State Information Commissioner may, at any time, by writing under his hand addressed to the Governor, resign from his office:

Provided that the State Chief Information Commissioner or a State Information Commissioner may be removed in the manner specified under section 17.

(5) The salaries and allowances payable to and other terms and conditions of service of—

(a) the State Chief Information Commissioner shall be the same as that of an Election Commissioner;

(b) the State Information Commissioner shall be the same as that of the Chief Secretary to the State Government:

Provided that if the State Chief Information Commissioner or a State Information Commissioner, at the time of his appointment is, in receipt of a pension, other than a disability or wound pension, in respect of any previous service under the Government of India or under the Government of a State, his salary in respect of the service as the State Chief Information Commissioner or a State Information Commissioner shall be reduced by the amount of that pension including any portion of pension which was commuted and pension equivalent of other forms of retirement benefits excluding pension equivalent of retirement gratuity:

Provided further that where the State Chief Information Commissioner or a State Information Commissioner if, at the time of his appointment is, in receipt of retirement benefits in respect of any previous service rendered in a Corporation established by or under any Central Act or State Act or a Government company owned or controlled by the Central Government or the State Government, his salary in respect of the service as the State Chief Information Commissioner or the State Information Commissioner shall be reduced by the amount of pension equivalent to the retirement benefits:

Provided also that the salaries, allowances and other conditions of service of the State Chief Information Commissioner and the State Information Commissioners shall not be varied to their disadvantage after their appointment.

(6) The State Government shall provide the State Chief Information Commissioner and the State Information Commissioners with such officers and employees as may be necessary for the efficient performance of their functions under this Act, and the salaries and allowances payable to and the terms and conditions of service of the officers and other employees appointed for the purpose of this Act shall be such as may be prescribed.

17 (1) Subject to the provisions of sub-section (3), the State Chief Information Commissioner or a State Information Commissioner shall be removed from his office only by order of the Governor on the ground of proved misbehaviour or incapacity after the Supreme Court, on a reference made to it by the Governor, has on inquiry, reported that the State Chief Information Commissioner or a State Information Commissioner, as the case may be, ought on such ground be removed.

(2) The Governor may suspend from office, and if deem necessary prohibit also from attending the office during inquiry, the State Chief Information Commissioner or a State Information Commissioner in respect of whom a reference has been made to the Supreme Court under sub-section (1) until the Governor has passed orders on receipt of the report of the Supreme Court on such reference.

(3) Notwithstanding anything contained in sub-section (1), the Governor may by order remove from office the State Chief Information Commissioner or a State Information Commissioner if a State Chief Information Commissioner or a State Information Commissioner, as the case may be,—

(a) is adjudged an insolvent; or

(b) has been convicted of an offence which, in the opinion of the Governor, involves moral turpitude; or

(c) engages during his term of office in any paid employment outside the duties of his office; or

(d) is, in the opinion of the Governor, unfit to continue in office by reason of infirmity of mind or body; or

(e) has acquired such financial or other interest as is likely to affect prejudicially his functions as the State Chief Information Commissioner or a State Information Commissioner.

(4) If the State Chief Information Commissioner or a State Information Commissioner in any way, concerned or interested in any contract or agreement made by or on behalf of the Government of the State or participates in any way in the profit thereof or in any benefit or emoluments arising therefrom otherwise than as a member and in common with the other members of an incorporated company, he shall, for the purposes of sub-section (1), be deemed to be guilty of misbehaviour.

CHAPTER V

Powers and functions of the Information Commissions, appeal and penalties

18 (1) Subject to the provisions of this Act, it shall be the duty of the Central Information Commission or State Information Commission, as the case may be, to receive and inquire into a complaint from any person,—

(a) who has been unable to submit a request to a Central Public Information Officer or State Public Information Officer, as the case may be, either by reason that no such officer has been appointed under this Act, or because the Central Assistant Public Information Officer or State Assistant Public Information Officer, as the case may be, has refused to accept his or her application for information or appeal under this Act for forwarding the same to the Central Public Information Officer or State Public Information Officer or senior officer specified in sub-section (1) of section 19 or the Central Information Commission or the State Information Commission, as the case may be;

(b) who has been refused access to any information requested under this Act;

(c) who has not been given a response to a request for information or access to information within the time limit specified under this Act;

(d) who has been required to pay an amount of fee which he or she considers unreasonable;

(e) who believes that he or she has been given incomplete, misleading or false information under this Act; and

(f) in respect of any other matter relating to requesting or obtaining access to records under this Act.

(2) Where the Central Information Commission or State Information Commission, as the case may be, is

satisfied that there are reasonable grounds to inquire into the matter, it may initiate an inquiry in respect thereof.

(3) The Central Information Commission or State Information Commission, as the case may be, shall, while inquiring into any matter under this section, have the same powers as are vested in a civil court while trying a suit under the Code of Civil Procedure, 1908, in respect of the following matters, namely:—

(a) summoning and enforcing the attendance of persons and compel them to give oral or written evidence on oath and to produce the documents or things;

(b) requiring the discovery and inspection of documents;

(c) receiving evidence on affidavit;

(d) requisitioning any public record or copies thereof from any court or office;

(e) issuing summons for examination of witnesses or documents; and

(f) any other matter which may be prescribed.

(4) Notwithstanding anything inconsistent contained in any other Act of Parliament or State Legislature, as the case may be, the Central Information Commission or the State Information Commission, as the case may be, may, during the inquiry of any complaint under this Act, examine any record to which this Act applies which is under the control of the public authority, and no such record may be withheld from it on any grounds.

19 (1) Any person who, does not receive a decision within the time specified in sub-section (1) or clause (a) of sub-section (3) of section 7, or is aggrieved by a decision of the Central Public Information Officer or State Public Information Officer, as the case may be, may within thirty days from the expiry of such period or from the receipt of such a decision prefer an appeal to such officer who is senior in rank to the Central Public Information Officer or State Public Information Officer as the case may be, in each public authority:

Provided that such officer may admit the appeal after the expiry of the period of thirty days if he or she is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(2) Where an appeal is preferred against an order made by a Central Public Information Officer or a State Public Information Officer, as the case may be, under section 11 to disclose third party information, the appeal by the concerned third party shall be made within thirty days from the date of the order.

(3) A second appeal against the decision under sub-section (1) shall lie within ninety days from the date on which the decision should have been made or was actually received, with the Central Information Commission or the State Information Commission:

Provided that the Central Information Commission or the State Information Commission, as the case may be, may admit the appeal after the expiry of the period of ninety days if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(4) If the decision of the Central Public Information Officer or State Public Information Officer, as the case may be, against which an appeal is preferred relates to information of a third party, the Central Information Commission or State Information Commission, as the case may be, shall give a reasonable opportunity of being heard to that third party.

(5) In any appeal proceedings, the onus to prove that a denial of a request was justified shall be on the Central Public Information Officer or State Public Information Officer, as the case may be, who denied the request.

(6) An appeal under sub-section (1) or sub-section (2) shall be disposed of within thirty days of the receipt of the appeal or within such extended period not exceeding a total of forty-five days from the date of filing thereof, as the case may be, for reasons to be recorded in writing.

(7) The decision of the Central Information Commission or State Information Commission, as the case may be, shall be binding.

(8) In its decision, the Central Information Commission or State Information Commission, as the case may be, has the power to—

(a) require the public authority to take any such steps as may be necessary to secure compliance with the provisions of this Act, including—

(i) by providing access to information, if so requested, in a particular form;

(ii) by appointing a Central Public Information Officer or State Public Information Officer, as the case may be;

(iii) by publishing certain information or categories of information;

(iv) by making necessary changes to its practices in relation to the maintenance, management and

destruction of records;

(v) by enhancing the provision of training on the right to information for its officials;

(vi) by providing it with an annual report in compliance with clause (b) of sub-section (1) of section 4;

(b) require the public authority to compensate the complainant for any loss or other detriment suffered;

(c) impose any of the penalties provided under this Act;

(d) reject the application.

(9) The Central Information Commission or State Information Commission, as the case may be, shall give notice of its decision, including any right of appeal, to the complainant and the public authority.

(10) The Central Information Commission or State Information Commission, as the case may be, shall decide the appeal in accordance with such procedure as may be prescribed.

20 (1) Where the Central Information Commission or the State Information Commission, as the case may be, at the time of deciding any complaint or appeal is of the opinion that the Central Public Information Officer or the State Public Information Officer, as the case may be, has, without any reasonable cause, refused to receive an application for information or has not furnished information within the time specified under sub-section (1) of section 7 or malafidely denied the request for information or knowingly given incorrect, incomplete or misleading information or destroyed information which was the subject of the request or obstructed in any manner in furnishing the information, it shall impose a penalty of two hundred and fifty rupees each day till application is received or information is furnished, so however, the total amount of such penalty shall not exceed twenty-five thousand rupees:

Provided that the Central Public Information Officer or the State Public Information Officer, as the case may be, shall be given a reasonable opportunity of being heard before any penalty is imposed on him:

Provided further that the burden of proving that he acted reasonably and diligently shall be on the Central Public Information Officer or the State Public Information Officer, as the case may be.

(2) Where the Central Information Commission or the State Information Commission, as the case may be, at the time of deciding any complaint or appeal is of the opinion that the Central Public Information Officer or the State Public Information Officer, as the case may be, has, without any reasonable cause and persistently, failed to receive an application for information or has not furnished information within the time specified under sub-section (1) of section 7 or malafidely denied the request for information or knowingly given incorrect, incomplete or misleading information or destroyed information which was the subject of the request or obstructed in any manner in furnishing the information, it shall recommend for disciplinary action against the Central Public Information Officer or the State Public Information Officer, as the case may be, under the service rules applicable to him.

CHAPTER VI

Miscellaneous

21 No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act or any rule made thereunder.

22 The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in the Official Secrets Act, 1923, and any other law for the time being in force or in any instrument having effect by virtue of any law other than this Act.

23 No court shall entertain any suit, application or other proceeding in respect of any order made under this Act and no such order shall be called in question otherwise than by way of an appeal under this Act.

24 (1) Nothing contained in this Act shall apply to the intelligence and security organisations specified in the Second Schedule, being organisations established by the Central Government or any information furnished by such organisations to that Government:

Provided that the information pertaining to the allegations of corruption and human rights violations shall not be excluded under this sub-section:

Provided further that in the case of information sought for is in respect of allegations of violation of human rights, the information shall only be provided after the approval of the Central Information Commission, and notwithstanding anything contained in section 7, such information shall be provided within forty-five days from the date of the receipt of request.

(2) The Central Government may, by notification in the Official Gazette, amend the Schedule by including therein any other intelligence or security organisation established by that Government or omitting therefrom any organisation already specified therein and on the publication of such

notification, such organisation shall be deemed to be included in or, as the case may be, omitted from the Schedule.

(3) Every notification issued under sub-section (2) shall be laid before each House of Parliament.

(4) Nothing contained in this Act shall apply to such intelligence and security organisation being organisations established by the State Government, as that Government may, from time to time, by notification in the Official Gazette, specify:

Provided that the information pertaining to the allegations of corruption and human rights violations shall not be excluded under this sub-section:

Provided further that in the case of information sought for is in respect of allegations of violation of human rights, the information shall only be provided after the approval of the State Information Commission and, notwithstanding anything contained in section 7, such information shall be provided within forty-five days from the date of the receipt of request.

(5) Every notification issued under sub-section (4) shall be laid before the State Legislature.

25 (1) The Central Information Commission or State Information Commission, as the case may be, shall, as soon as practicable after the end of each year, prepare a report on the implementation of the provisions of this Act during that year and forward a copy thereof to the appropriate Government.

(2) Each Ministry or Department shall, in relation to the public authorities within their jurisdiction, collect and provide such information to the Central Information Commission or State Information Commission, as the case may be, as is required to prepare the report under this section and comply with the requirements concerning the furnishing of that information and keeping of records for the purposes of this section.

(3) Each report shall state in respect of the year to which the report relates,—

(a) the number of requests made to each public authority;

(b) the number of decisions where applicants were not entitled to access to the documents pursuant to the requests, the provisions of this Act under which these decisions were made and the number of times such provisions were invoked;

(c) the number of appeals referred to the Central Information Commission or State Information Commission, as the case may be, for review, the nature of the appeals and the outcome of the appeals;

(d) particulars of any disciplinary action taken against any officer in respect of the administration of this Act;

(e) the amount of charges collected by each public authority under this Act;

(f) any facts which indicate an effort by the public authorities to administer and implement the spirit and intention of this Act;

(g) recommendations for reform, including recommendations in respect of the particular public authorities, for the development, improvement, modernisation, reform or amendment to this Act or other legislation or common law or any other matter relevant for operationalising the right to access information.

(4) The Central Government or the State Government, as the case may be, may, as soon as practicable after the end of each year, cause a copy of the report of the Central Information Commission or the State Information Commission, as the case may be, referred to in sub-section (1) to be laid before each House of Parliament or, as the case may be, before each House of the State Legislature, where there are two Houses, and where there is one House of the State Legislature before that House.

(5) If it appears to the Central Information Commission or State Information Commission, as the case may be, that the practice of a public authority in relation to the exercise of its functions under this Act does not conform with the provisions or spirit of this Act, it may give to the authority a recommendation specifying the steps which ought in its opinion to be taken for promoting such conformity.

26 (1) The appropriate Government may, to the extent of availability of financial and other resources,—

(a) develop and organise educational programmes to advance the understanding of the public, in particular of disadvantaged communities as to how to exercise the rights contemplated under this Act;

(b) encourage public authorities to participate in the development and organisation of programmes referred to in clause (a) and to undertake such programmes themselves;

(c) promote timely and effective dissemination of accurate information by public authorities about their activities; and

(d) train Central Public Information Officers or State Public Information Officers, as the case may be, of public authorities and produce relevant training materials for use by the public authorities

was in default of the provision was punishable for a term which could extend to three years and be liable for fine.

7. Section 182 of the Companies Act 2013 substantively incorporated the provisions of Section 293-A of the 1956 Act, as amended in 1985. Section 182 enables a company to contribute any amount directly or indirectly to any political party. The provision bars a Government company and a company which has been in existence for less than three financial years from contributing to a political party. The provisos to the provision prescribe the following two conditions:

   a. The aggregate of the amount contributed by the company in any financial year shall not exceed seven and a half per cent of its average net profits during the three immediately preceding financial years;[10] and

   b. A contribution can be made only if the Board of Directors issues a resolution authorizing the contribution at a meeting. Such a resolution shall, subject to the other provisions of the Section, be deemed to be a justification in law for the making and acceptance of the contribution authorized by the Board.[11]

8. Sub-section (3) of Section 182 mandates every company to disclose in its profit and loss account any amount contributed by it to any political party during the financial year with specific particulars of the total amount

[10] Companies Act, First proviso to Section 182(1).
[11] Companies Act, second proviso to Section 182(1)

contributed along with the name of the political party to which the contribution was made.

9. Section 182 of the Companies Act 2013 made two modifications from Section 293-A of the Companies Act 1956: (a) the cap on the contributions which can be made by companies was increased from 5 % to 7.5% of their average net profits; and (b) more stringent consequences for violation of were imposed. The fine was extendable to five times (instead of three times prescribed in the earlier provision) of the contribution.

10. The Finance Act 2017 made three changes to Section 182 of the Companies Act:

    a. The first proviso to Section 182(1) which prescribed a cap on corporate funding was omitted;

    b. Section 182(3) was amended to only require a disclosure of the **total** amount contributed to political parties by a company in a financial year and excluded the requirement to disclose the particulars of the amount contributed to each political party; and

    c. Sub-section 3A was introduced, by which a company could contribute to a political party only by a cheque, bank draft, or electronic clearing system. The proviso to the sub-section states that a company may also contribute through any instrument issued pursuant to any scheme notified under any law for the time being in force for contribution to political parties.

ii. Curbing black money

11. The Taxation Laws (Amendment) Act 1978 included Section 13A to the IT Act exempting the income of political parties through financial contributions and investments from income tax. The objects and reasons of the Amending Act stipulated that tax exemption would increase disposable funds from "legitimate sources". However, to secure the benefit of exemption, the following conditions prescribed in the proviso were required to be fulfilled:

    a. The political party was required to keep and maintain books of account and other documents which would enable the Assessing Officer to properly deduce its income;[12]

    b. The political party had to maintain a record of voluntary contributions in excess of twenty thousand rupees[13], along with the name and address of the person who made such contributions;[14] and

    c. The accounts of the political party were required to be audited by an accountant.[15]

[12] IT Act, Proviso (a) to Section 13A
[13] It was ten thousand rupees when Section 13A was introduced. It was increased to twenty thousand rupees by the Election and Other Related Laws (Amendment) Act 2003
[14] IT Act, Proviso (b) to Section 13A
[15] IT Act, Proviso (c) to Section 13A

12. By the Election and Other Related Laws (Amendment) Act 2003, Sections 80GGB[16] and 80GGC[17] were inserted in the IT Act making contributions made to political parties tax deductible. The speech of Mr Arun Jaitley, the then Minister of Law and Justice while moving the Bill indicates that contributions were made tax deductible to "incentivize contributions" through cheque and other banking channels.

13. The Finance Act 2017 made the following amendments to Section 13A of the IT Act:

    a. The political party was not required to maintain a record of contributions if the contribution was received by electoral bonds;[18] and

    b. The political party must receive a donation in excess of two thousand rupees only by a cheque, bank draft, electronic clearing system or through an electoral bond.[19]

iii. <u>Transparency</u>

14. The Election and Other Related Laws (Amendment) Act 2003 amended the provisions of the RPA. Section 29C of the RP Act was introduced for requiring each political party to declare the details of the contributions received. The

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[16] 80GGB. "Deduction in respect of contributions made by companies to political parties-In computing the total income of an assessee, being an Indian company, there shall be deducted any sum contributed by it, in the previous year to any political party or an electoral trust:
Provided that no deduction shall be allowed under this section in respect of any sum contributed by way of cash."
[17] 80 GGC. "Deduction in respect of contributions made by any person to political parties- In computing the total income of an assessee, being any person, except local authority and every artificial juridical person wholly or partly funded by the Government, there shall be deducted any amount of contribution made by him, in the previous year, to a political party [or an electoral trust] :
[Provided that no deduction shall be allowed under this section in respect of any sum contributed by way of cash.]
Explanation.—For the purposes of sections 80GGB and 80GGC, "political party" means a political party registered under section 29A of the Representation of the People Act, 1951 (43 of 1951)."
[18] IT Act, amendment to Proviso (b) to Section 13A
[19] IT Act, Proviso (d) to Section 13A

treasurer of a political party or any other person authorized by the political party must in each financial year prepare a report in respect of the contributions in excess of twenty thousand rupees received by the party from a person or company other than Government companies in that financial year. The report prepared must be submitted to the Election Commission before the due date for furnishing a return of income of that financial year under the IT Act.[20] A political party which fails to submit the report shall not be entitled to any tax relief as provided under the IT Act.[21]

15. The provision was amended by the Finance Act 2017 to include a proviso by which the political party was not required to disclose details of contributions received by electoral bonds.

Annexure I to this Judgment depicts in a tabular form the amendments to the provisions of the RP Act, the IT Act, the Companies Act, and the RBI Act by the Finance Act 2017.

16. The effect of the amendments introduced by the Finance Act to the above legislations is that:

    a. A new scheme for financial contribution to political parties is introduced in the form of electoral bonds;

    b. The political parties need not disclose the contributions received through electoral bonds;

[20] RPA, Section 29C (3)
[21] RPA, Section 29C (4)

made by profit-making and loss-making companies to political parties alike. The observations made above must not be construed to mean that the Legislature cannot place a cap on the contributions made by individuals. The exposition is that the law must not treat companies and individual contributors alike because of the variance in the degree of harm on free and fair elections.

H. Conclusion and Directions

216. In view of the discussion above, the following are our conclusions:

a. The Electoral Bond Scheme, the proviso to Section 29C(1) of the Representation of the People Act 1951 (as amended by Section 137 of Finance Act 2017), Section 182(3) of the Companies Act (as amended by Section 154 of the Finance Act 2017), and Section 13A(b) (as amended by Section 11 of Finance Act 2017) are violative of Article 19(1)(a) and unconstitutional; and

b. The deletion of the proviso to Section 182(1) of the Companies Act permitting unlimited corporate contributions to political parties is arbitrary and violative of Article 14.

217. We direct the disclosure of information on contributions received by political parties under the Electoral Bond Scheme to give logical and complete effect to our ruling. On 12 April 2019, this Court issued an interim order directing that the information of donations received and donations which will be received must be submitted by political parties to the ECI in a sealed cover. This Court directed that political parties submit detailed particulars of the

donors as against each Bond, the amount of each bond and the full particulars of the credit received against each bond, namely, the particulars of the bank account to which the amount has been credited and the date on which each such credit was made. During the course of the hearing, Mr Amit Sharma, Counsel for the ECI, stated that the ECI had only collected information on contributions made in 2019 because a reading of Paragraph 14 of the interim order indicates that the direction was only limited to contributions made in that year. Paragraphs 13 and 14 of the interim order are extracted below:

> "13. In the above perspective, according to us, the just and proper interim direction would be to require all the political parties who have received donations through Electoral Bonds to submit to the Election Commission of India in sealed cover, detailed particulars of the donors as against each bond; the amount of each such bond and the full particulars of the credit received against each bond, namely, the particulars of the bank account to which the amount has been credited and the date of each such credit.
>
> 14. The above details will be furnished forthwith in respect of Electoral Bonds received by a political party till date. The details of such other bonds that may be received by such a political party upto the date fixed for issuing such bonds as per the Note of the Ministry of Finance dated 28.2.2019, i.e 15.5.2019 will be submitted on or before 30th May, 2019. The sealed covers will remain in the custody of the Election Commission of India and will abide by such orders as may be passed by the Court."

218. Paragraph 14 of the interim order does not limit the operation of Paragraph 13. Paragraph 13 contains a direction in unequivocal terms to political parties to submit particulars of contributions received through Electoral Bonds to the ECI. Paragraph 14 only prescribes a timeline for the submission of particulars on contributions when the window for Electoral Bond contributions was open in 2019. In view of the interim direction of this Court, the ECI must have

collected particulars of contributions made to political parties through Electoral Bonds.

219. In view of our discussion above, the following directions are issued:

a. The issuing bank shall herewith stop the issuance of Electoral Bonds;

b. SBI shall submit details of the Electoral Bonds purchased since the interim order of this Court dated 12 April 2019 till date to the ECI. The details shall include the date of purchase of each Electoral Bond, the name of the purchaser of the bond and the denomination of the Electoral Bond purchased;

c. SBI shall submit the details of political parties which have received contributions through Electoral Bonds since the interim order of this Court dated 12 April 2019 till date to the ECI. SBI must disclose details of **each** Electoral Bond encashed by political parties which shall include the date of encashment and the denomination of the Electoral Bond;

d. SBI shall submit the above information to the ECI within three weeks from the date of this judgment, that is, by 6 March 2024;

e. The ECI shall publish the information shared by the SBI on its official website within one week of the receipt of the information, that is, by 13 March 2024; and

f. Electoral Bonds which are within the validity period of fifteen days but that which have not been encashed by the political party yet shall be returned by the political party or the purchaser depending on who is in possession of the bond to the issuing bank. The issuing bank, upon the

return of the valid bond, shall refund the amount to the purchaser's account.

220. Writ petitions are disposed of in terms of the above judgment.

221. Pending applications(s), if any, stand disposed of.

.....CJI.
[Dr Dhananjaya Y Chandrachud]

.....J.
[B R Gavai]

.....J.
[J B Pardiwala]

.....J.
[Manoj Misra]

New Delhi;
February 15, 2024

ANNEXURE I

Section 29C, Representation of the People Act 1951	
Prior to Amendment by the Finance Act 2017	Upon Amendment by Section 137 of the Finance Act, 2017
29C. Declaration of donation received by the political parties. -	Section 29C. Declaration of donation received by the political parties. –
(1) The treasurer of a political party or any other person authorized by the political party in this behalf shall, in each financial year, prepare a report in respect of the following, namely; (a) the contribution in excess of twenty thousand rupees received by such political party from any person in that financial year; (b) the contribution in excess of twenty thousand rupees received by such political party from companies other than Government companies in that financial year.	(1) The treasurer of a political party or any other person authorized by the political party in this behalf shall, in each financial year, prepare a report in respect of the following, namely: (a) the contribution in excess of twenty thousand rupees received by such political party from any person in that financial year; (b) the contribution in excess of twenty thousand rupees received by such political party from companies other than Government companies in that financial year. **Provided that nothing contained in this subsection shall apply to the contributions received by way of an electoral bond. Explanation – For the purposes of this subsection, "electoral bond" means a bond referred to in the Explanation to sub-section (3) of section 31 of the Reserve Bank of India Act, 1934.**
(2) The report under sub-section (1) shall be in such form as may be prescribed.	(2) The report under sub-section (1) shall be in such form as may be prescribed.
(3) The report for a financial year under subsection (1) shall be submitted by the treasurer of a political party or any other person authorized by the political party in this behalf before the due date for furnishing a return of income of that financial year under section 139 of the Income-tax Act, 1961 (43 of 1961), to the Election Commission.	(3) The report for a financial year under subsection (1) shall be submitted by the treasurer of a political party or any other person authorized by the political party in this behalf before the due date for furnishing a return of income of that financial year under section 139 of the Income-tax Act, 1961 (43 of 1961), to the Election Commission.
(4) Where the treasurer of any political party or any other person authorized by the political party in this behalf fails to submit a report under sub-section (3) then, notwithstanding anything contained in the Income-tax Act, 1961 (43 of 1961), such political party shall not be entitled to any tax relief under that Act.	(4) Where the treasurer of any political party or any other person authorized by the political party in this behalf fails to submit a report under sub-section (3) then, notwithstanding anything contained in the

	Income-tax Act, 1961 (43 of 1961), such political party shall not be entitled to any tax relief under that Act.
Section 182, Companies Act 2013	
Prior to Amendment by the Finance Act, 2017	Upon Amendment by Section 154 of the Finance Act, 2017
182.Prohibitions and restrictions regarding political contributions. 1) Notwithstanding anything contained in any other provision of this Act, a company, other than a Government company and a company which has been in existence for less than three financial years, may contribute any amount directly or indirectly to any political party: Provided that the amount referred to in subsection (1) or, as the case may be, the aggregate of the amount which may be so contributed by the company in any financial year shall not exceed seven and a half per cent of its average net profits during the three immediately preceding financial years: Provided further that no such contribution shall be made by a company unless a resolution authorising the making of such contribution is passed at a meeting of the Board of Directors and such resolution shall, subject to the other provisions of this section, be deemed to be justification in law for the making and the acceptance of the contribution authorised by it.	**182.Prohibitions and restrictions regarding political contributions.** 1) Notwithstanding anything contained in any other provision of this Act, a company, other than a Government company and a company which has been in existence for less than three financial years, may contribute any amount directly or indirectly to any political party: **(First proviso omitted)** Provided that no such contribution shall be made by a company unless a resolution authorising the making of such contribution is passed at a meeting of the Board of Directors and such resolution shall, subject to the other provisions of this section, be deemed to be justification in law for the making of the contribution authorised by it.
Section 182 (3) Every company shall disclose in its profit and loss account **any amount** or amounts contributed by it to any political party during the financial year to which that account relates, **giving particulars of the total amount contributed and the name of the party to which such amount has been contributed.**	**Section 182 (3)** Every company shall disclose in its profit and loss account the total amount contributed by it under this section during the financial year to which the account relates. (3A) Notwithstanding anything contained in subsection (1), the contribution under this section shall not be made except by an account payee cheque drawn on a bank or an account payee bank draft or use of electronic clearing system through a bank account:

	Provided that a company may make contribution through any instruments, issued pursuant to any scheme notified under any law for the time being in force, for contribution to the political parties.
Section 13A, Income Tax Act 1995	
Prior to Amendment by the Finance Act, 2017	Upon Amendment by Section 11 of the Finance Act, 2017
13A. Special provision relating to incomes of political parties Any income of a political party which is chargeable under the head "Income from house property" or "Income from other sources" or any income by way of voluntary contributions received by a political party from any person shall not be included in the total income of the previous year of such political party: Provided that- (a) such political party keeps and maintains such books of account and other documents as would enable the Assessing Officer to properly deduce its income therefrom; (b) in respect of each such voluntary contribution in excess of ten thousand rupees, such political party keeps and maintains a record of such contribution and the name and address of the person who has made such contribution; and (c) the accounts of such political party are audited by an accountant as defined in the Explanation below sub- section (2) of section 288. Explanation.- For the purposes of this section, "political party" means an association or body of individual citizens of India registered with the Election Commission of India as a political party under paragraph 3 of the Election Symbols (Reservation and Allotment) Order, 1968, and includes a political party deemed to	**13A. Special provision relating to incomes of political parties** Any income of a political party which is chargeable under the head "Income from house property" or "Income from other sources" or any income by way of voluntary contributions received by a political party from any person shall not be included in the total income of the previous year of such political party: Provided that- (a) such political party keeps and maintains such books of account and other documents as would enable the Assessing Officer to properly deduce its income therefrom; (b) in respect of each such voluntary contribution **other than contribution by way of electoral bond** in excess of ten thousand rupees, such political party keeps and maintains a record of such contribution and the name and address of the person who has made such contribution; and (c) the accounts of such political party are audited by an accountant as defined in the Explanation below sub- section (2) of section 288; and **(d) no donation exceeding two thousand rupees is received by such political party otherwise than by an account payee cheque drawn on a bank or an account payee bank draft or use of electronic clearing system through a**

REPORTABLE

IN THE SUPREME COURT OF INDIA

CIVIL ORIGINAL JURISDICTION

WRIT PETITION (CIVIL) NO. 880 OF 2017

ASSOCIATION FOR DEMOCRATIC REFORMS AND ANOTHER ..... PETITIONERS

VERSUS

UNION OF INDIA AND OTHERS ..... RESPONDENTS

W I T H

WRIT PETITION (CIVIL) NO. 59 OF 2018

WRIT PETITION (CIVIL) NO. 975 OF 2022

A N D

WRIT PETITION (CIVIL) NO. 1132 OF 2022

J U D G M E N T

SANJIV KHANNA, J.

I have had the benefit of perusing the judgment authored by Dr. D.Y. Chandrachud, the Hon'ble Chief Justice. I respectfully agree with the findings and conclusions recorded therein. However, since my reasoning is different to arrive at the same conclusion,

State are tested in matters that directly concern the balance between legislative policy and judicial independence. The validity of the *Tribunals Reforms Act, 2021*[1] has been challenged. However, this challenge cannot be viewed in isolation, as we shall highlight in subsequent discussion. It forms part of a continuing constitutional dialogue on the structure, independence, and functioning of tribunals.

II. THE CHALLENGE

4. The lead petition in this batch *inter-alia* challenges the *vires* of the Impugned Act. Let us look at the provisions of the Impugned Act. Section 3 empowers the Central Government to frame rules on the qualifications, appointments, salaries, allowances, and service conditions of the Chairperson and Members of Tribunals, notwithstanding anything in prior judgments or existing laws. These rules account for the required experience, relevant specialisation, and the scheme of the said Act. No person below fifty years of age is eligible for appointment. Appointments are to be made by the Central

[1] **Hereinafter, "Impugned Act".**

Government on the recommendation of a Search-cum-Selection Committee[2].

5. For all Tribunals other than State Administrative Tribunals, the SCSC is chaired by the Chief Justice of India or a Supreme Court Judge nominated by him, and includes two Secretaries to the Government of India, and one additional Member, who may be the outgoing or sitting Chairperson of the Tribunal. In case the sitting Chairperson seeks re-appointment, a retired Supreme Court Judge or retired Chief Justice of a High Court nominated by the CJI would be a member. In certain Tribunals such as Industrial Tribunals, Debt Recovery Tribunals, and others notified by the Central Government, this additional member must always be a retired Supreme Court Judge or retired Chief Justice of a High Court. The Secretary of the concerned Ministry or Department acts as the Member-Secretary of the Committee, without voting rights. For State Administrative Tribunals, the SCSC comprises the Chief Justice of the High Court (Chairman), the State Chief Secretary, the Chairman of the State Public Service Commission, and one additional member, subject to similar

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[2] **Hereinafter, "SCSC".**

of the legislature and cannot claim the same status, parity, or substitution as High Courts or their Judges. Nevertheless, it was reiterated that the individuals appointed to such tribunals exercise judicial or quasi-judicial functions and must, therefore, possess a judicial approach along with adequate knowledge and expertise in relevant branches of constitutional, administrative, and tax law.

(iii) L. Chandra Kumar v. Union of India and Others

27. Subsequently, the judgment in ***S.P. Sampath Kumar*** *(supra)* was reconsidered by a seven-judge bench in ***L. Chandra Kumar v. Union of India and Others***[6]. The Court held that the High Courts' power of judicial superintendence over all courts and tribunals within their jurisdiction forms part of the basic structure of the Constitution. While tribunals cannot exercise judicial review of legislative action to the exclusion of the High Courts or the Supreme Court, they may perform a supplementary, though not a substitutive, role in this regard. The Court declared Article 323A(2)(d) and Article 323B(3)(d) unconstitutional insofar as they exclude the jurisdiction of the High Courts

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[6] **(1997) 3 SCC 261**

under Articles 226/227 and the Supreme Court under Article 32, holding that all tribunal decisions remain subject to the writ jurisdiction of the Division Bench of the concerned High Court. It was observed that:

> "**99.** ...The Tribunals will, nevertheless, continue to act like Courts of first instance in respect of the areas of law for which they have been constituted. It will not, therefore, be open for litigants to directly approach the High Courts even in cases where they question the vires of statutory legislations (except where the legislation which creates the particular Tribunal is challenged) by overlooking the jurisdiction of the Tribunal concerned..."

28. The Court also examined the qualifications and competence of the individuals appointed to the tribunals, as well as the question of which authority should exercise administrative supervision over them. It was held:

> "**95.** ...It must be remembered that the setting-up of these Tribunals is founded on the premise that specialist bodies comprising both trained administrators and those with judicial experience would, by virtue of their specialised knowledge, be better equipped to dispense speedy and efficient justice. It was expected that a judicious mix of judicial members and those with grass-roots experience would best serve this purpose. To hold that the Tribunal should consist only of judicial members would attack the primary basis of the theory pursuant to which they have been constituted. Since the Selection Committee is now headed by a Judge of the Supreme Court, nominated by the Chief Justice of India, we have reason to

believe that the Committee would take care to ensure that administrative members are chosen from amongst those who have some background to deal with such cases."

29. Emphasizing the need for efficient running of these tribunals, the Court suggested:

"**96.** It has been brought to our notice that one reason why these Tribunals have been functioning inefficiently is because there is no authority charged with supervising and fulfilling their administrative requirements.... The creation of a single umbrella organisation will, in our view, remove many of the ills of the present system. If the need arises, there can be separate umbrella organisations at the Central and the State levels. Such a supervisory authority must try to ensure that the independence of the members of all such Tribunals is maintained. To that extent, the procedure for the selection of the members of the Tribunals, the manner in which funds are allocated for the functioning of the Tribunals and all other consequential details will have to be clearly spelt out."

97. The suggestions that we have made in respect of appointments to Tribunals and the supervision of their administrative function need to be considered in detail by those entrusted with the duty of formulating the policy in this respect. That body will also have to take into consideration the comments of experts bodies like the LCI [Law Commission of India] and the Malimath Committee in this regard. We, therefore, recommend that the Union of India initiate action in this behalf and after consulting all concerned, place all these Tribunals under one single nodal department, preferably the Legal Department."

Claims Tribunal Act, 1987, the *Securities and Exchange Board of India Act, 1992*, the *Recovery of Debts and Bankruptcy Act, 1993*, and the *Telecom Regulatory Authority of India Act, 1997* are all modified in the same manner. In each of these statutes, the Act replaces references to the earlier framework under *Part XIV of Chapter VI of the Finance Act, 2017* with references to the Impugned Act, specifying that the appointment, tenure, and service conditions of tribunal members will now be governed by Chapter II of the new Act.

139. Thus, it can be seen that what the 2021 Ordinance did through amendments to Section 184 of the *Finance Act, 2017*, the Impugned Act now does through Sections 3, 5, and 7. The minimum age bar of fifty years for all appointments, the truncated four-year tenure with upper age caps of 70/67, the requirement that the Search-cum-Selection Committee forward a panel of two names for each vacancy, and the fixing of allowances and benefits to those of equivalent civil servants are all provisions, which have already been judicially tested and struck down. The Court has expressly held that these measures are arbitrary, destructive of judicial independence,

and amount to an impermissible legislative override of binding directions.

140. Merely shifting the same content from the amended Section 184 of the Finance Act into Sections 3, 5 and 7 of a stand-alone statute, while using the *non obstante* formula "notwithstanding anything contained in any judgment or order", does not cure the constitutional defects. It simply re-enacts them in another avatar. The Impugned Act, therefore, does not "cure" the law declared earlier, but consciously defies it.

141. Equally, the learned Attorney General's present defence of the Impugned Act is a verbatim reprise of arguments that have already been considered and rejected. In the earlier round, the Union had contended that directions regarding age, tenure, HRA and the recommendation of a single name were mere "suggestions", that Parliament is free to depart from them in exercise of its policy-making power, and that judicial review must be confined to testing explicit textual violations of the Constitution. The decision in **MBA (V)** rejected this argument on multiple grounds. *First*, it held that the directions on composition, tenure and conditions of service

were in the nature of mandamus flowing from adjudication on separation of powers, independence of the judiciary and Article 14, and therefore constitute "law declared" under Article 141. *Second*, it held that while the legislature may neutralise a judgment by curing the underlying defect, it cannot simply re-enact the very provision or rule that was struck down and declare the Court's view to be non-binding. Such repetition was described as an "impermissible legislative override" and an "indirect intrusion into the judicial sphere". *Third*, it emphasised that separation of powers and judicial independence are justiciable constitutional principles, and that in matters affecting the structure and functioning of adjudicatory bodies, the Court must apply a searching standard of review and cannot defer to "policy" in the same way as in economic or commercial regulation. The Impugned Act thus stands on two identical, already-rejected premises: it reproduces the substance of provisions invalidated in the earlier litigations without curing the defects, and it rests on constitutional arguments that the Court has already expressly disapproved.

142. Therefore, the provisions of the Impugned Act cannot be sustained. They violate the constitutional principles of separation of powers and judicial independence, which are firmly embedded in the text, structure, and spirit of the Constitution. The Impugned Act directly contradicts binding judicial pronouncements that have repeatedly clarified the standards governing the appointment, tenure, and functioning of tribunal members. Instead of curing the defects identified by this Court, the Impugned Act merely reproduces, in slightly altered form, the very provisions earlier struck down. This amounts to a legislative override in the strictest sense: an attempt to nullify binding judicial directions without addressing the underlying constitutional infirmities. Such an approach is impermissible under our constitutional scheme. Because the Impugned Act fails to remove the defects identified in prior judgments and instead reenacts them under a new label, it falls afoul of the doctrine of constitutional supremacy. Accordingly, the impugned provisions are struck down as unconstitutional.

Attorney General on 9th February 2018. However, for the reasons best known to the Union of India, the appointment orders were issued only on 11th September 2021 and 1st October 2021. According to the appointment order, the said appointments, including their tenure, are in terms of the new provisions. We are, therefore, of the considered view that the said appointments by the Central Government are totally inconsistent with the statement made by the learned Attorney General on 9th February 2018.

148. We are giving these details with regard to ITAT Members only as an example. There may be such cases in respect of other Tribunals also.

IX. CONCLUSION

> "The form of the administration must be appropriate to and in the same sense as the form of the Constitution. The other is that it is perfectly possible to pervert the Constitution, without changing its form by merely changing the form of the administration and to make it inconsistent and opposed to the spirit of the Constitution."
>
> **— Dr. B.R. Ambedkar in Constituent Assembly (4 November 1948)**

149. The *foresighted constitutional vision* of Dr. Ambedkar is strikingly evident in the present series of litigations concerning the tribunal system. The repeated reenactment of the same

provisions, which have been struck down by the judiciary, shows that the "form of the administration" is being made "inconsistent" with the spirit of the Constitution, as Dr. Ambedkar had highlighted. The issues raised in the present petitions are not new to constitutional adjudication. They have engaged the attention of this Court on several earlier occasions, spanning more than three decades. We must express our disapproval of the manner in which the Union of India has repeatedly chosen to not accept the directions of this Court on the very issues that have already been conclusively settled through a series of judgments. It is indeed unfortunate that instead of giving effect to the well-established principles laid down by this Court on the question of the independence and functioning of tribunals, the legislature has chosen to re-enact or re-introduce provisions that reopen the same constitutional debates under different enactments and rules.

150. In a judicial system already burdened with a staggering pendency across the Supreme Court, High Courts, and district courts, the continued recurrence of such issues consumes valuable judicial time that could otherwise be devoted to adjudicating matters of pressing public and constitutional

importance. The responsibility of reducing pendency in courts does not rest only on the judiciary. It is a shared institutional duty. While the judiciary must strive to enhance efficiency in case management and decision-making, the other branches of government must exercise their legislative and executive powers with due regard to constitutional principles and judicial precedent. Respect for settled law is as essential to good governance as it is to judicial discipline. It ensures that institutional time is spent in advancing justice rather than revisiting questions long resolved.

151. We direct that unless the constitutional concerns repeatedly highlighted by this Court in the series of tribunal-related judgments are fully addressed and cured, and unless Parliament enacts an appropriate legislation that faithfully gives effect to those principles, the principles and directions laid down in **MBA (IV)** and **MBA (V)** shall continue to govern all matters relating to the appointment, qualifications, tenure, service conditions, and allied aspects concerning tribunal members and chairpersons. These judgments represent the binding constitutional standards necessary to preserve judicial independence and to ensure that tribunals function

as effective and impartial adjudicatory bodies. Accordingly, they shall operate as the controlling framework.

152. As consistently directed in the earlier judgments of this Court, the executive bears a constitutional obligation to establish a National Tribunals Commission in accordance with the principles and framework articulated therein. The creation of such a commission is an essential structural safeguard designed to ensure independence, transparency, and uniformity in the appointment, administration, and functioning of tribunals across the country. The repeated judicial insistence on this body reflects the Court's recognition that piecemeal reforms cannot remedy the systemic deficiencies that have persisted for decades.

153. We grant the Union of India a period of four months from the date of this judgment to establish a National Tribunals Commission. The commission so constituted must adhere to the principles articulated by this Court, particularly concerning independence from executive control, professional expertise, transparent processes, and oversight mechanisms that reinforce public confidence in the system.

154. We, further, clarify and direct that the service conditions of all such Members of ITAT who were appointed by orders dated 11th September 2021 and 1st October 2021 shall be governed by the old Act and the old Rules.

155. We also clarify that all appointments of Members and Chairpersons whose selection or recommendation by the Search-cum-Selection Committee was completed before the commencement of the *Tribunal Reforms Act, 2021*, but whose formal appointment notifications were issued after the Act came into force, shall be protected. Such appointments will continue to be governed by the parent statutes and by the conditions of service as laid down in **MBA (IV)** and **MBA (V)**, rather than by the truncated tenure and altered service conditions introduced by the *Tribunal Reforms Act, 2021*.

156. The Writ Petitions are *disposed of* in the above terms.

157. Pending application(s), if any, shall stand disposed of.

158. We place on record our deep appreciation for Shri Arvind P. Datar, Shri C.S. Vaidyanathan, Shri Sidharth Luthra, Shri P. S. Patwalia, Shri Sanjay Jain, Shri Porus F. Kaka, Shri Gopal Sankaranarayanan, Shri Balbir Singh, Shri Gagan Gupta, Shri Puneet Mittal, Shri Sachit Jolly,

Shri B.M. Chatterji, Shri Ninad Laud, learned Senior Counsel/counsel. We also place on record our appreciation for Shri R. Venkataramani, learned Attorney General for India, and Ms. Aishwarya Bhati, learned Additional Solicitor General.

.....CJI
(B.R. GAVAI)

I respectfully concur with the reasoning and directions. *The Tribunal Reforms Act, 2021* is a replica of the struck down Ordinance; old wine in a new bottle, the wine whets not the judicial palette, but the bottle merely dazzle.

.....J
(K. VINOD CHANDRAN)

NEW DELHI;
NOVEMBER 19, 2025.

[5][(*ha*) "Reserve Bank" means the Reserve Bank of India constituted under section 3 of the Reserve Bank of India Act, 1934 (2 of 1934);]

(*i*) "securities" has the meaning assigned to it in section 2 of the Securities Contracts (Regulation) Act, 1956 (42 of 1956);

[6][(j) Technical Member" means a Technical Member appointed under sub-section (1) of section 15MB.]

[7][(2) Words and expressions used and not defined in this Act but defined in the Securities Contracts (Regulation) Act, 1956 (42 of 1956) [8][or the Depositories Act, 1996], shall have the meanings respectively assigned to them in that Act].

CHAPTER II

ESTABLISHMENT OF THE SECURITIES AND EXCHANGE BOARD OF INDIA

Establishment and incorporation of Board.

3. (1) With effect from such date as the Central Government may, by notification, appoint, there shall be established, for the purposes of this Act, a Board by the name of the Securities and Exchange Board of India.

(2) The Board shall be a body corporate by the name aforesaid, having perpetual succession and a common seal, with power subject to the provisions of this Act, to acquire, hold and dispose of property, both movable and immovable, and to contract, and shall, by the said name, sue or be sued.

(3) The head office of the Board shall be at Bombay.

(4) The Board may establish offices at other places in India.

Management of the Board.

4. (1) The Board shall consist of the following members, namely:—

(*a*) a Chairman;

(*b*) two members from amongst the officials of the [9][Ministry] of the Central Government dealing with Finance [10][and administration of the Companies Act, 1956 (1 of 1956)];

(*c*) one member from amongst the officials of [11][the Reserve Bank];

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[5] Inserted by the Securities Laws (Amendment) Act, 2002, w.e.f. 29-10-2002.

[6] Inserted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Prt II Section 1 dated March 31, 2017. This shall come into force from April 26, 2017.

[7] Substituted by the Securities Laws (Amendment) Act, 1995, w.e.f. 25-01-1995. Prior to its substitution, sub-section (2) reads as under:

"(2) Words and expressions used and not defined in this Act but defined in the Capital Issues (Control) Act, 1947 or the Securities Contracts Regulation Act, 1956 shall have the same meanings respectively assigned to them in those Acts."

[8] Inserted by the Depositories Act, 1996, w.r.e.f. 20-09-1995.

[9] Substituted for "Ministries" by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002.

[10] Substituted for "and law", by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002.

[11] Substituted for "the Reserve Bank of India constituted under section 3 of the Reserve Bank of India Act 1934 (2 of 1934)", by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002.

[12][(*d*)five other members of whom at least three shall be the whole-time members,] to be appointed by the Central Government.

(2) The general superintendence, direction and management of the affairs of the Board shall vest in a Board of members, which may exercise all powers and do all acts and things which may be exercised or done by the Board.

(3) Save as otherwise determined by regulations, the Chairman shall also have powers of general superintendence and direction of the affairs of the Board and may also exercise all powers and do all acts and things which may be exercised or done by that Board.

(4) The Chairman and members referred to in clauses (*a*) and (*d*) of sub-section (1) shall be appointed by the Central Government and the members referred to in clauses (*b*) and (*c*) of that sub-section shall be nominated by the Central Government and the [13][Reserve Bank] respectively.

(5) The Chairman and the other members referred to in clauses (*a*) and (*d*) of sub-section (1) shall be persons of ability, integrity and standing who have shown capacity in dealing with problems relating to securities market or have special knowledge or experience of law, finance, economics, accountancy, administration or in any other discipline which, in the opinion of the Central Government, shall be useful to the Board.

Term of office and conditions of service of Chairman and members of the Board.

5. (1) The term of office and other conditions of service of the Chairman and the members referred to in clause (*d*) of sub-section (1) of section 4 shall be such as may be prescribed.

(2) Notwithstanding anything contained in sub-section (1), the Central Government shall have the right to terminate the services of the Chairman or a member appointed under clause (*d*) of sub-section (1) of section 4, at any time before the expiry of the period prescribed under sub-section (1), by giving him notice of not less than three months in writing or three months' salary and allowances in lieu thereof, and the Chairman or a member, as the case may be, shall also have the right to relinquish his office, at any time before the expiry of the period prescribed under sub-section (1), by giving to the Central Government notice of not less than three months in writing.

Removal of member from office.

6. [14][* * *] The Central Government shall remove a member from office if he—

(*a*) is, or at any time has been, adjudicated as insolvent;

(*b*) is of unsound mind and stands so declared by a competent court;

(*c*) has been convicted of an offence which, in the opinion of the Central Government, involves a moral turpitude;

(*d*) [15][* * *]

(*e*) has, in the opinion of the Central Government, so abused his position as to render his continuation in office detrimental to the public interest :

Provided that no member shall be removed under this clause unless he has been given a reasonable opportunity of being heard in the matter.

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[12] Substituted by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002. Prior to its substitution, clause (d) read as: "(d) two other members".

[13] Substituted for "Reserve Bank of India" by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002.

[14] "(1)" omitted by Securities Laws (Amendment) Act 1995, w.e.f. 25-1-1995.

[15] Omitted, by Securities Laws (Amendment) Act 1995, w.e.f. 25-1-1995. Prior to omission clause (d) read as: "(d) is appointed as a director of a company".

Meetings.

7. (1) The Board shall meet at such times and places, and shall observe such rules of procedure in regard to the transaction of business at its meetings (including quorum at such meetings) as may be provided by regulations.

(2) The Chairman or, if for any reason, he is unable to attend a meeting of the Board, any other member chosen by the members present from amongst themselves at the meeting shall preside at the meeting.

(3) All questions which come up before any meeting of the Board shall be decided by a majority votes of the members present and voting, and, in the event of an equality of votes, the Chairman, or in his absence, the person presiding, shall have a second or casting vote.

[16][**Member not to participate in meetings in certain cases.**

7A. Any member, who is a director of a company and who as such director has any direct or indirect pecuniary interest in any matter coming up for consideration at a meeting of the Board, shall, as soon as possible after relevant circumstances have come to his knowledge, disclose the nature of his interest at such meeting and such disclosure shall be recorded in the proceedings of the Board, and the member shall not take any part in any deliberation or decision of the Board with respect to that matter.]

Vacancies, etc., not to invalidate proceedings of Board.

8. No act or proceeding of the Board shall be invalid merely by reason of—

(*a*) any vacancy in, or any defect in the constitution of, the Board; or

(*b*) any defect in the appointment of a person acting as a member of the Board; or

(*c*) any irregularity in the procedure of the Board not affecting the merits of the case.

Officers and employees of the Board.

9. (1) The Board may appoint such other officers and employees as it considers necessary for the efficient discharge of its functions under this Act.

(2) The term and other conditions of service of officers and employees of the Board appointed under sub-section (1) shall be such as may be determined by regulations.

CHAPTER III

TRANSFER OF ASSETS, LIABILITIES, ETC., OF THE EXISTING SECURITIES AND EXCHANGE BOARD TO THE BOARD

Transfer of assets, liabilities, etc., of existing Securities and Exchange Board to the Board.

10. (1) On and from the date of establishment of the Board,—

(*a*) any reference to the existing Securities and Exchange Board in any law other than this Act or in any contract or other instrument shall be deemed as a reference to the Board;

(*b*) all properties and assets, movable and immovable, of, or belonging to, the existing Securities and Exchange Board, shall vest in the Board;

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[16] Inserted by Securities Laws (Amendment) Act 1995, w.e.f. 25-1-1995.

(*c*) all rights and liabilities of the existing Securities and Exchange Board shall be transferred to, and be the rights and liabilities of, the Board;

(*d*) without prejudice to the provisions of clause (*c*), all debts, obligations and liabilities incurred, all contracts entered into and all matters and things engaged to be done by, with or for the existing Securities and Exchange Board immediately before that date, for or in connection with the purpose of the said existing Board shall be deemed to have been incurred, entered into, or engaged to be done by, with or for, the Board;

(*e*) all sums of money due to the existing Securities and Exchange Board immediately before that date shall be deemed to be due to the Board;

(*f*) all suits and other legal proceedings instituted or which could have been instituted by or against the existing Securities and Exchange Board immediately before that date may be continued or may be instituted by or against the Board; and

(*g*) every employee holding any office under the existing Securities and Exchange Board immediately before that date shall hold his office in the Board by the same tenure and upon the same terms and conditions of service as respects remuneration, leave, provident fund, retirement and other terminal benefits as he would have held such office if the Board had not been established and shall continue to do so as an employee of the Board or until the expiry of the period of six months from that date if such employee opts not to be the employee of the Board within such period.

(2) Notwithstanding anything contained in the Industrial Disputes Act, 1947 (14 of 1947), or in any other law for the time being in force, absorption of any employee by the Board in its regular service under this section shall not entitle such employee to any compensation under that Act or other law and no such claim shall be entertained by any court, tribunal or other authority.

CHAPTER IV

POWERS AND FUNCTIONS OF THE BOARD

Functions of Board.

11. (1) Subject to the provisions of this Act, it shall be the duty of the Board to protect the interests of investors in securities and to promote the development of, and to regulate the securities market, by such measures as it thinks fit.

(2) Without prejudice to the generality of the foregoing provisions, the measures referred to therein may provide for—

(*a*) regulating the business in stock exchanges and any other securities markets;

(*b*) registering and regulating the working of stock brokers, sub-brokers, share transfer agents, bankers to an issue, trustees of trust deeds, registrars to an issue, merchant bankers, underwriters, portfolio managers, investment advisers and such other intermediaries who may be associated with securities markets in any manner;

[17][(*ba*) registering and regulating the working of the depositories, [18][participants], custodians of securities, foreign institutional investors, credit rating agencies and such other intermediaries as the Board may, by notification, specify in this behalf;]

(*c*) registering and regulating the working of [19][venture capital funds and collective investment schemes], including mutual funds;

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[17] Inserted by Securities Laws (Amendment) Act 1995, w.r.e.f. 25-1-1995.

[18] Inserted by the Depositories Act, 1996, w.r.e.f. 20-9-1995.

[19] Substituted for "collective investment schemes" by Securities Laws (Amendment) Act 1995, w.e.f. 25-1-1995.

(*d*) promoting and regulating self-regulatory organisations;

(*e*) prohibiting fraudulent and unfair trade practices relating to securities markets;

(*f*) promoting investors' education and training of intermediaries of securities markets;

(*g*) prohibiting insider trading in securities;

(*h*) regulating substantial acquisition of shares and take over of companies;

(*i*) calling for information from, undertaking inspection, conducting inquiries and audits of the [20][stock exchanges, mutual funds, other persons associated with the securities market], intermediaries and self-regulatory organisations in the securities market;

[21][(*ia*) calling for information and records from any person including any bank or any other authority or board or corporation established or constituted by or under any Central or State Act which, in the opinion of the Board, shall be relevant to any investigation or inquiry by the Board in respect of any transaction in securities;]

[22][(ib) calling for information from, or furnishing information to, other authorities, whether in India or outside India, having functions similar to those of the Board, in the matters relating to the prevention or detection of violations in respect of securities laws, subject to the provisions of other laws for the time being in force in this regard:

Provided that the Board, for the purpose of furnishing any information to any authority outside India, may enter into an arrangement or agreement or understanding with such authority with the prior approval of the Central Government;]

(*j*) performing such functions and exercising such powers under the provisions of [23][* * *] the Securities Contracts (Regulation) Act, 1956 (42 of 1956), as may be delegated to it by the Central Government;

(*k*) levying fees or other charges for carrying out the purposes of this section;

(*l*) conducting research for the above purposes;

[24][(*la*) calling from or furnishing to any such agencies, as may be specified by the Board, such information as may be considered necessary by it for the efficient discharge of its functions;]

(*m*) performing such other functions as may be prescribed.

[25][(2A) Without prejudice to the provisions contained in sub-section (2), the Board may take measures to undertake inspection of any book, or register, or other document or record of any listed public company or a public company (not being intermediaries referred to in section 12) which intends to get its securities listed on any recognised stock exchange where the Board has reasonable grounds to believe that such company has been indulging in insider trading or fraudulent and unfair trade practices relating to securities market.]

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[20] Substituted for "stock exchanges and" by the Securities Laws (Amendment) Act 1995, w.e.f. 25-1-1995.

[21] Substituted for "calling for information and record from any bank or any other authority or board or corporation established or constituted by or under any Central, State or Provincial Act in respect of any transaction in securities which is under investigation or inquiry by the Board" by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 18-07-2013. Earlier, section 11(2)(ia) was inserted by the SEBI (Amendment) Act, 2002 w.e.f. 29-10-2002.

[22] Inserted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 06-03-1998.

[23] The words "the Capital Issues (Control) Act, 1947 (29 of 1947) and" omitted by the Securities Laws (Amendment) Act 1995, w.e.f. 25-1-1995.

[24] Inserted by the Securities Laws (Amendment) Act 1995, w.e.f. 25-1-1995.

[25] Inserted by the the SEBI (Amendment) Act, 2002 w.e.f. 29-10-2002.

[26][(3) Notwithstanding anything contained in any other law for the time being in force while exercising the powers under [27][clause (*i*) or clause (*ia*) of sub-section (2) or sub- section (2*A*)], the Board shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (5 of 1908), while trying a suit, in respect of the following matters, namely :—

(*i*) the discovery and production of books of account and other documents, at such place and such time as may be specified by the Board;

(*ii*) summoning and enforcing the attendance of persons and examining them on oath;

(*iii*) inspection of any books, registers and other documents of any person referred to in section 12, at any place;]

[28][(*iv*) inspection of any book, or register, or other document or record of the company referred to in sub-section (2A);

(*v*) issuing commissions for the examination of witnesses or documents.]

[29][(4) Without prejudice to the provisions contained in sub-sections (1), (2), (2A) and (3) and section 11B, the Board may, by an order, for reasons to be recorded in writing, in the interests of investors or securities market, take any of the following measures, either pending investigation or inquiry or on completion of such investigation or inquiry, namely:—

(*a*) suspend the trading of any security in a recognised stock exchange;

(*b*) restrain persons from accessing the securities market and prohibit any person associated with securities market to buy, sell or deal in securities;

(*c*) suspend any office-bearer of any stock exchange or self-regulatory organisation from holding such position;

(*d*) impound and retain the proceeds or securities in respect of any transaction which is under investigation;

(*e*) [30][attach, for a period not exceeding ninety days, bank accounts or other property of any intermediary or any person associated with the securities market in any manner involved in violation of any of the provisions of this Act, or the rules or the regulations made thereunder:

Provided that the Board shall, within ninety days of the said attachment, obtain confirmation of the said attachment from the Special Court, established under section 26A, having jurisdiction and on such confirmation, such attachment shall continue during the pendency of the aforesaid proceedings and on conclusion of the said proceedings, the provisions of section 28A shall apply:

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[26] Inserted by the Securities Laws (Amendment) Act 1995, w.e.f. 25-1-1995.

[27] Substituted for "clause (i) of sub-section (2)" by the SEBI (Amendment) Act, 2002 w.e.f. 29-10-2002.

[28] Inserted by the SEBI (Amendment) Act, 2002 w.e.f. 29-10-2002.

[29] Inserted by the SEBI (Amendment) Act, 2002 w.e.f. 29-10-2002.

[30] Substituted by the Banning of Unregulated Deposit Schemes Ordinance, 2019 [No. 7 of 2019] w.e.f 21-2-2019. Prior to its substitution, clause (e) read as follows,-

"(e) attach, after passing of an order on an application made for approval by the Judicial Magistrate of the first class having jurisdiction, for a period not exceeding one month, one or more bank account or accounts of any intermediary or any person associated with the securities market in any manner involved in violation of any of the provisions of this Act, or the rules or the regulations made thereunder :

Provided that only the bank account or accounts or any transaction entered therein, so far as it relates to the proceeds actually involved in violation of any of the provisions of this Act, or the rules or the regulations made thereunder shall be allowed to be attached;"

Provided further that only property, bank account or accounts or any transaction entered therein, so far as it relates to the proceeds actually involved in violation of any of the provisions of this Act, or the rules or the regulations made thereunder shall be allowed to be attached];

(*f*) direct any intermediary or any person associated with the securities market in any manner not to dispose of or alienate an asset forming part of any transaction which is under investigation :

Provided that the Board may, without prejudice to the provisions contained in sub-section (2) or sub-section (2A), take any of the measures specified in clause (*d*) or clause (*e*) or clause (*f*), in respect of any listed public company or a public company (not being intermediaries referred to in section 12) which intends to get its securities listed on any recognised stock exchange where the Board has reasonable grounds to believe that such company has been indulging in insider trading or fraudulent and unfair trade practices relating to securities market :

Provided further that the Board shall, either before or after passing such orders, give an opportunity of hearing to such intermediaries or persons concerned.]

[31][(4A)Without prejudice to the provisions contained in sub-sections (1), (2), (2A), (3) and (4), section 11B and section 15-I, the Board may, by an order, for reasons to be recorded in writing, levy penalty under sections 15A, 15B, 15C, 15D, 15E, 15EA, 15EB, 15F, 15G, 15H, 15HA and 15HB after holding an inquiry in the prescribed manner.]

[32][(5) The amount disgorged, pursuant to a direction issued, under section 11B of this Act or section 12A of the Securities Contracts (Regulation) Act, 1956 or section 19 of the Depositories Act, 1996 , [33][or under a settlement made under section 15JB or section 23JA of the Securities Contracts (Regulation) Act, 1956 or section 19-IA of the Depositories Act, 1996,] as the case may be, shall be credited to the Investor Protection and Education Fund established by the Board and such amount shall be utilised by the Board in accordance with the regulations made under this Act.]

[34][**Board to regulate or prohibit issue of prospectus, offer document or advertisement soliciting money for issue of securities.**

11A. (1) Without prejudice to the provisions of the Companies Act, 1956 (1 of 1956), the Board may, for the protection of investors,—

(*a*) specify, by regulations—

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[31] Inserted by the Finance Act, 2018 w.e.f. 08-03-2019.

[32] Inserted by the Securities Laws (Amendment) Act, 2014 w.e.f. 18-07-2013.

[33] Inserted by the Finance Act, 2018 w.e.f. 08-03-2019.

[34] Substituted by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002. Earlier section 11A was inserted by the Securities Laws (Amendment) Act, 1995, w.e.f. 25-1-1995. Prior to its substitution, section 11A read as under:-

"11A. Matters to be disclosed by the companies.- Without Prejudice to the Provisions of the Companies Act , 1956 (1 of 1956), the board may , for the protection of investors, specify, by regulations,-

(a) the matters relating to issue of capital, transfer of securities and other matters incidental thereto; and

(b) the manner in which such matters,

shall be disclosed by the companies."

(*i*) the matters relating to issue of capital, transfer of securities and other matters incidental thereto; and

(*ii*) the manner in which such matters shall be disclosed by the companies;

(*b*) by general or special orders—

(*i*) prohibit any company from issuing prospectus, any offer document, or advertisement soliciting money from the public for the issue of securities;

(*ii*) specify the conditions subject to which the prospectus, such offer document or advertisement, if not prohibited, may be issued.

(2) Without prejudice to the provisions of section 21 of the Securities Contracts (Regulation) Act, 1956 (42 of 1956), the Board may specify the requirements for listing and transfer of securities and other matters incidental thereto.]

[35][**Collective investment scheme.**

11AA. (1) Any scheme or arrangement which satisfies the conditions referred to in sub-section (2) [36][or sub-section (2A)] shall be a collective investment scheme:

[37][Provided that any pooling of funds under any scheme or arrangement, which is not registered with the Board or is not covered under sub-section (3), involving a corpus amount of one hundred crore rupees or more shall be deemed to be a collective investment scheme.]

(2) Any scheme or arrangement made or offered by any [38][person] under which,—

(*i*) the contributions, or payments made by the investors, by whatever name called, are pooled and utilized for the purposes of the scheme or arrangement;

(*ii*) the contributions or payments are made to such scheme or arrangement by the investors with a view to receive profits, income, produce or property, whether movable or immovable, from such scheme or arrangement;

(*iii*) the property, contribution or investment forming part of scheme or arrangement, whether identifiable or not, is managed on behalf of the investors;

(*iv*) the investors do not have day-to-day control over the management and operation of the scheme or arrangement.

[39][(2A)] Any scheme or arrangement made or offered by any person satisfying the conditions as may be specified in accordance with the regulations made under this Act.]

(3) Notwithstanding anything contained in sub-section (2) [40][or sub-section (2A)], any scheme or arrangement—

(*i*) made or offered by a co-operative society registered under the Co-operative Societies Act, 1912 (2 of 1912) or a society being a society registered or deemed to be registered under any law relating to co-operative societies for the time being in force in any State;

(*ii*) under which deposits are accepted by non-banking financial companies as defined in clause (*f*) of section 45-I of the Reserve Bank of India Act, 1934 (2 of 1934);

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[35]Inserted by the SEBI (Amendment) Act 1999, w.e.f. 22-2-2000.

[36]Inserted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 18-07-2013.

[37] Inserted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 18-07-2013.

[38] Substituted for "company" by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 18-07-2013.

[39] Inserted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 18-07-2013.

[40] Inserted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 18-07-2013.

(*iii*) being a contract of insurance to which the Insurance Act, 1938 (4 of 1938), applies;

(*iv*) providing for any Scheme, Pension Scheme or the Insurance Scheme framed under the Employees Provident Fund and Miscellaneous Provisions Act, 1952 (19 of 1952);

(*v*) under which deposits are accepted under section 58A of the Companies Act, 1956 (1 of 1956);

(*vi*) under which deposits are accepted by a company declared as a Nidhi or a mutual benefit society under section 620A of the Companies Act, 1956 (1 of 1956);

(*vii*) falling within the meaning of Chit business as defined in clause (*d*) of section 2 of the Chit Fund Act, 1982 (40 of 1982);

(*viii*) under which contributions made are in the nature of subscription to a mutual fund;

[41][(ix) such other scheme or arrangement which the Central Government may, in consultation with the Board, notify,]

shall not be a collective investment scheme.]

[42]**[Power to issue directions [43][and levy penalty].**

11B. [44][(1)[Save as otherwise provided in section 11, if after making or causing to be made an enquiry, the Board is satisfied that it is necessary,—

(*i*) in the interest of investors, or orderly development of securities market; or

(*ii*) to prevent the affairs of any intermediary or other persons referred to in section 12 being conducted in a manner detrimental to the interest of investors or securities market; or

(*iii*) to secure the proper management of any such intermediary or person,

it may issue such directions,—

(*a*) to any person or class of persons referred to in section 12, or associated with the securities market; or

(*b*) to any company in respect of matters specified in section 11A, as may be appropriate in the interests of investors in securities and the securities market.]

[45][Explanation.—For the removal of doubts, it is hereby declared that the power to issue directions under this section shall include and always be deemed to have been included the power to direct any person, who made profit or averted loss by indulging in any transaction or activity in contravention of the provisions of this Act or regulations made thereunder, to disgorge an amount equivalent to the wrongful gain made or loss averted by such contravention.]

[46][(2) Without prejudice to the provisions contained in sub-section (1), sub-section (4A) of section 11 and section 15-I, the Board may, by an order, for reasons to be recorded in writing, levy penalty under sections 15A, 15B, 15C, 15D, 15E, 15EA, 15EB, 15F, 15G, 15H, 15HA and 15HB after holding an inquiry in the prescribed manner.]

[47]**[Investigation.**

11C. (1) Where the Board has reasonable ground to believe that—

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[41] Inserted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 18-07-2013.
[42] Inserted by Securities Laws (Amendment) Act 1995, w.e.f. 25-1-1995.
[43] Inserted by the Finance Act, 2018 w.e.f. 08-03-2019.
[44] Inserted by the Finance Act, 2018 w.e.f. 08-03-2019.
[45] Inserted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 18-07-2013.
[46] Inserted by the Finance Act, 2018 w.e.f. 08-03-2019.
[47] Inserted by SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002.

shall be liable to a penalty which shall not be less than one lakh rupees but which may extend to ten crore rupees or three times the amount of profits made out of such act, whichever is higher.

Explanation.—In this section, the expressions "computer contaminant", "computer virus" and "damage" shall have the meanings respectively assigned to them undersection 43 of the Information Technology Act, 2000.]

Penalty for contravention where no separate penalty has been provided.

15HB. Whoever fails to comply with any provision of this Act, the rules or the regulations made or directions issued by the Board thereunder for which no separate penalty has been provided, shall be [104][liable to a penalty which shall not be less than one lakh rupees but which may extend to one crore rupees.]

Power to adjudicate.

15-I. (1) For the purpose of adjudging under sections 15A, 15B, 15C, 15D, 15E, [105][15EA, 15EB,] 15F, 15G [106][,15H, 15HA and 15HB], the Board [107][may] appoint any officer not below the rank of a Division Chief to be an adjudicating officer for holding an inquiry in the prescribed manner after giving any person concerned a reasonable opportunity of being heard for the purpose of imposing any penalty.

(2) While holding an inquiry the adjudicating officer shall have power to summon and enforce the attendance of any person acquainted with the facts and circumstances of the case to give evidence or to produce any document which in the opinion of the adjudicating officer, may be useful for or relevant to the subject-matter of the inquiry and if, on such inquiry, he is satisfied that the person has failed to comply with the provisions of any of the sections specified in sub-section (1), he may impose such penalty as he thinks fit in accordance with the provisions of any of those sections.

[108][(3) The Board may call for and examine the record of any proceedings under this section and if it considers that the order passed by the adjudicating officer is erroneous to the extent it is not in the interests of the securities market, it may, after making or causing to be made such inquiry as it deems necessary, pass an order enhancing the quantum of penalty, if the circumstances of the case so justify:

Provided that no such order shall be passed unless the person concerned has been given an opportunity of being heard in the matter:

Provided further that nothing contained in this sub-section shall be applicable after an expiry of a period of three months from the date of the order passed by the adjudicating officer or disposal of the appeal under section 15T, whichever is earlier.]

[109][Factors to be taken into account while adjudging quantum of penalty.]

104Substituted for the words "liable to a penalty which may extend to one crore rupees" by the Securities Laws (Amendment) Act, 2014, w.e.f. 08-09-2014.

105 Inserted by the Finance Act, 2018 w.e.f. 08-03-2019.

106 Substituted for "and 15H" by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002.

107 Substituted for the words " shall" by the Finance Act, 2018 w.e.f. 08-03-2019.

108 Inserted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 28-03-2014.

109 Substituted for the words " Factors to be taken into account by the adjudicating officer." by the Finance Act, 2018 w.e.f. 08-03-2019.

15J. While adjudging quantum of penalty under [110][15-I or section 11 or section 11B, the Board or the adjudicating officer] shall have due regard to the following factors, namely :—

(*a*) the amount of disproportionate gain or unfair advantage, wherever quantifiable, made as a result of the default;

(*b*) the amount of loss caused to an investor or group of investors as a result of the default;

(*c*) the repetitive nature of the default.

[111][*Explanation*.—For the removal of doubts, it is clarified that the power [112][…] to adjudge the quantum of penalty under sections 15A to 15E, clauses (b) and (c) of section 15F, 15G, 15H and 15HA shall be and shall always be deemed to have been exercised under the provisions of this section.]

[113][Crediting sums realised by way of penalties to Consolidated Fund of India.

15JA. All sums realised by way of penalties under this Act shall be credited to the Consolidated Fund of India.]

[114][Settlement of administrative and civil proceedings.

[15JB. (1) Notwithstanding anything contained in any other law for the time being in force, any person, against whom any proceedings have been initiated or may be initiated under section 11, section 11B, section 11D, sub-section (3) of section 12 or section 15-I, may file an application in writing to the Board proposing for settlement of the proceedings initiated or to be initiated for the alleged defaults.

(2) The Board may, after taking into consideration the nature, gravity and impact of defaults, agree to the proposal for settlement, on payment of such sum by the defaulter or on such other terms as may be determined by the Board in accordance with the regulations made under this Act.

(3) The settlement proceedings under this section shall be conducted in accordance with the procedure specified in the regulations made under this Act.

(4) No appeal shall lie under section 15T against any order passed by the Board or adjudicating officer, as the case may be, under this section.]

[115][(5) All settlement amounts, excluding the disgorgement amount and legal costs, realised under this Act shall be credited to the Consolidated Fund of India.]

CHAPTER VIB

ESTABLISHMENT, JURISDICTION, AUTHORITY AND PROCEDURE OF [116][SECURITIES] APPELLATE TRIBUNAL

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[110] Substituted for the words "section 15-I, the adjudicating officer" by the Finance Act, 2018 w.e.f. 08-03-2019.

[111] Inserted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Part II Section 1 dated March 31, 2017. This shall come into force from April 26, 2017.

[112] Omitted the words "of an adjudicating officer " by the Finance Act, 2018 w.e.f. 08-03-2019.

[113] Inserted by the SEBI (Amendment) Act, 2002, S.19 w.e.f. 29-10-2002.

[114] Inserted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 20-04-2007.

[115] Inserted by the Finance Act, 2018 w.e.f. 08-03-2019.

[116] Inserted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Prt II Section 1 dated March 31, 2017. This shall come into force from April 26, 2017.

Establishment of Securities Appellate Tribunals.

[117]**[15K.** (1) The Central Government shall, by notification, establish a Tribunal to be known as the Securities Appellate Tribunal to exercise the jurisdiction, powers and authority conferred on it by or under this Act or any other law for the time being in force.

(2) The Central Government shall also specify in the notification referred to in sub-section (1), the matters and places in relation to which the Securities Appellate Tribunal may exercise jurisdiction.]

[118]**[Composition of Securities Appellate Tribunal.**

15L. (1) The Securities Appellate Tribunal shall consist of a Presiding Officer and such number of Judicial Members and Technical Members as the Central Government may determine, by notification, to exercise the powers and discharge the functions conferred on the Securities Appellate Tribunal under this Act or any other law for the time being in force.

(2) Subject to the provisions of this Act,—

(a) the jurisdiction of the Securities Appellate Tribunal may be exercised by Benches thereof;

(b) a Bench may be constituted by the Presiding Officer of the Securities Appellate Tribunal with two or more Judicial or Technical Members as he may deem fit:

Provided that every Bench constituted shall include at least one Judicial Member and one Technical Member;

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[117] Substituted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Prt II Section 1 dated March 31, 2017. This shall come into force from April 26, 2017. Prior to its substitution, Section 15K read as follows:

'(1) The Central Government shall by notification, establish one or more Appellate Tribunals to be known as the Securities Appellate Tribunal to exercise the jurisdiction, powers and authority conferred on such Tribunal by or under this Act {or any other law for the time being in force}.

(2) The Central Government shall also specify in the notification referred to in sub-section (1) the matters and places in relation to which the Securities Appellate Tribunal may exercise jurisdiction.'

[118] Substituted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Prt II Section 1 dated March 31, 2017. This shall come into force from April 26, 2017. Prior to its substitution, Section 15L read as follows:

"A Securities Appellate Tribunal shall consist of a Presiding Officer and two other members, to be appointed, by notification, by the Central Government:

Provided that the Securities Appellate Tribunal, consisting of one person only, established before the commencement of the Securities and Exchange Board of India (Amendment) Act, 2002, shall continue to exercise the jurisdiction, powers and authority conferred on it by or under this Act or any other law for the time being in force till two other Members are appointed under this section."

Section 15 L was earlier substituted for Sections 15L and 15M by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002.

Prior to their substitution, Section 15L and 15M read as under:-

"15-L. Composition of securities Appellate Tribunal. – A Securities Appellate Tribunal shall consist of one person only (hereinafter referred to as the Presiding Officer of the Securities Appellate Tribunal) to be appointed, by notification, by the central Government.

15M. Qualifications for appointment as Presiding Officer of the Securities Appellate Tribunal. – A person shall not be qualified for appointment as the Presiding Officer of a Securities Appellate Tribunal unless he - (a) is, or has been, or is qualified to be, a Judge of a High Court; or

(b) has been a member of the Indian Legal Service and has held a post in Grade I of that service for at least three years; or

(c) has held office as the Presiding Officer of a tribunal for at least three years."

15S. (1) The Central Government shall provide the Securities Appellate Tribunal with such officers and employees as that Government may think fit.

(2) The officers and employees of the Securities Appellate Tribunal shall discharge their functions under general superintendence of the Presiding Officer.

(3) The salaries and allowances and other conditions of service of the officers and employees of the Securities Appellate Tribunal shall be such as may be prescribed.

Appeal to the Securities Appellate Tribunal.

15T. [132][(1) Save as provided in sub-section (2), any person aggrieved,—

(*a*) by an order of the Board made, on and after the commencement of the Securities Laws (Second Amendment) Act, 1999, under this Act, or the rules or regulations made thereunder; or

(*b*) by an order made by an adjudicating officer under this Act[133][; or],

[134]["(c) by an order of the Insurance Regulatory and Development Authority or the Pension Fund Regulatory and Development Authority,]

may prefer an appeal to a Securities Appellate Tribunal having jurisdiction in the matter.

[135][(2) ********]

(3) Every appeal under sub-section (1) shall be filed within a period of forty-five days from the date on which a copy of the order made by the [136][Board or the Adjudicating Officer [137][or the Insurance Regulatory and Development Authority or the Pension Fund Regulatory and Development Authority], as the case may be,] is received by him and it shall be in such form and be accompanied by such fee as may be prescribed :

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[132] Substituted for Sub-sec (1) & (2) by the SEBI (Amendment) Act 1999, w.e.f. 16-12-1999. Prior to their substitution, Sub-sections (1) & (2) were read as under:

"(1) Save as provided in sub-section (2), any person aggrieved by any order made by any Adjudicating Officer under this Act, may prefer an appeal to a Securities Appellate Tribunal having jurisdiction in the matter.

(2) No appeal shall lie to the Securities Appellate Tribunal from an order made by an Adjudicating Officer with the consent of the parties."

[133] Inserted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Prt II Section 1 dated March 31, 2017 This shall come into force from April 26, 2017.

[134] Inserted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Prt II Section 1 dated March 31, 2017 This shall come into force from April 26, 2017.

[135] Omitted by the Securities Laws (Amendment) Act, 2014, w.r.e.f. 18-07-2013. Prior to omission, sub-section (2) read as under:

"(2) No appeal shall lie to the Securities Appellate Tribunal from an order made—

(*a*) by the Board on and after the commencement of the Securities Laws (Second Amendment) Act, 1999;

(*b*) by an adjudicating officer,

with the consent of the parties."

[136] Substituted for "a copy of the order made by the adjudicating officer" by SEBI (Amendment) Act 1999, w.e.f. 16-12-1999.

[137] Inserted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Prt II Section 1 dated March 31, 2017 This shall come into force from April 26, 2017.

Provided that the Securities Appellate Tribunal may entertain an appeal after the expiry of the said period of forty-five days if it is satisfied that there was sufficient cause for not filing it within that period.

(4) On receipt of an appeal under sub-section (1), the Securities Appellate Tribunal may, after giving the parties to the appeal, an opportunity of being heard, pass such orders thereon as it thinks fit, confirming, modifying or setting aside the order appealed against.

(5) The Securities Appellate Tribunal shall send a copy of every order made by it to the [138][Board, [139][or the Insurance Regulatory and Development Authority or the Pension Fund Regulatory and Development Authority, as the case may be] the] parties to the appeal and to the concerned Adjudicating Officer.

(6) The appeal filed before the Securities Appellate Tribunal under sub-section (1) shall be dealt with by it as expeditiously as possible and endeavour shall be made by it to dispose of the appeal finally within six months from the date of receipt of the appeal.

Procedure and powers of the Securities Appellate Tribunal.

15U. (1) The Securities Appellate Tribunal shall not be bound by the procedure laid down by the Code of Civil Procedure, 1908 (5 of 1908), but shall be guided by the principles of natural justice and, subject to the other provisions of this Act, and of any rules, the Securities Appellate Tribunal shall have powers to regulate their own procedure including the places at which they shall have their sittings.

(2) The Securities Appellate Tribunal shall have, for the purposes of discharging their functions under this Act, the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (5 of 1908), while trying a suit, in respect of the following matters, namely :—

(*a*) summoning and enforcing the attendance of any person and examining him on oath;

(*b*) requiring the discovery and production of documents;

(*c*) receiving evidence on affidavits;

(*d*) issuing commissions for the examination of witnesses or documents;

(*e*) reviewing its decisions;

(*f*) dismissing an application for default or deciding it *ex parte* ;

(*g*) setting aside any order of dismissal of any application for default or any order passed by it *ex parte* ;

(*h*) any other matter which may be prescribed.

(3) Every proceeding before the Securities Appellate Tribunal shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228, and for the purposes of section 196 of the Indian Penal Code (45 of 1860), and the Securities Appellate Tribunal shall be deemed to be a civil court for all the purposes of section 195 and Chapter XXVI of the Code of Criminal Procedure, 1973 (2 of 1974).

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[138] Substituted for "parties", SEBI (Amendment) Act 1999, w.e.f. 16-12-1999.

[139] Inserted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Prt II Section 1 dated March 31, 2017 This shall come into force from April 26, 2017.

[140][(4) Where Benches are constituted, the Presiding Officer of the Securities Appellate Tribunal may, from time to time make provisions as to the distribution of the business of the Securities Appellate Tribunal amongst the Benches and also provide for the matters which may be dealt with, by each Bench.

(5) On the application of any of the parties and after notice to the parties, and after hearing such of them as he may desire to be heard, or on his own motion without such notice, the Presiding Officer of the Securities Appellate Tribunal may transfer any case pending before one Bench, for disposal, to any other Bench.

(6) If a Bench of the Securities Appellate Tribunal consisting of two members differ in opinion on any point, they shall state the point or points on which they differ, and make a reference to the Presiding Officer of the Securities Appellate Tribunal who shall either hear the point or points himself or refer the case for hearing only on such point or points by one or more of the other members of the Securities Appellate Tribunal and such point or points shall be decided according to the opinion of the majority of the members of the Securities Appellate Tribunal who have heard the case, including those who first heard it.]

[141][**Right to legal representation.**

15V. The appellant may either appear in person or authorise one or more chartered accountants or company secretaries or cost accountants or legal practitioners or any of its officers to present his or its case before the Securities Appellate Tribunal.

Explanation. – For the purposes of this section, –

(*a*) "chartered accountant" means a chartered accountant as defined in clause (*b*) of sub-section (1) of section 2 of the Chartered Accountants Act, 1949 (38 of 1949) and who has obtained a certificate of practice under sub-section (1) of section 6 of that Act;

(*b*) "company secretary" means a company secretary as defined in clause (*c*) of sub-section (1) of section 2 of the Company Secretaries Act, 1980 (56 of 1980) and who has obtained a certificate of practice under sub-section (1) of section 6 of that Act;

(*c*) "cost accountant" means a cost accountant as defined in clause (*b*) of sub-section (1) of section 2 of the Cost and Works Accountants Act, 1959 (23 of 1959) and who has obtained a certificate of practice under sub-section (1) of section 6 of that Act;

(*d*) "legal practitioner" means an advocate, vakil or any attorney of any High Court, and includes a pleader in practice.]

Limitation.

15W. The provisions of the Limitation Act, 1963 (36 of 1963), shall, as far as may be, apply to an appeal made to a Securities Appellate Tribunal.

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[140] Inserted by Part VIII of Chapter VI of the Finance Act, 2017 vide Gazette Notification No. 7, Extraordinary Prt II Section 1 dated March 31, 2017 This shall come into force from April 26, 2017.

[141] Substituted for S. 15V by the SEBI (Amendment) Act 1999, w.e.f. 16-12-1999. Prior to their substitution, S. 15V read as under:-

"15V. The appellant may either appear in person or authorise one or more legal practitioners or any of its officers to present his or its case before the Securities Appellate Tribunal."

[142][Presiding Officer, Members and staff of Securities Appellate Tribunals to be public servants.

15X. The Presiding Officer, Members and other officers and employees of a Securities Appellate Tribunal shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code (45 of 1860).]

Civil Court not to have jurisdiction.

15Y. No civil court shall have jurisdiction to entertain any suit or proceeding in respect of any matter which an adjudicating officer appointed under this Act or a Securities Appellate Tribunal constituted under this Act is empowered by or under this Act to determine and no injunction shall be granted by any court or other authority in respect of any action taken or to be taken in pursuance of any power conferred by or under this Act.

[143][Appeal to Supreme Court.

15Z. Any person aggrieved by any decision or order of the Securities Appellate Tribunal may file an appeal to the Supreme Court within sixty days from the date of communication of the decision or order of the Securities Appellate Tribunal to him on any question of law arising out of such order :

Provided that the Supreme Court may, if it is satisfied that the applicant was prevented by sufficient cause from filing the appeal within the said period, allow it to be filed within a further period not exceeding sixty days.]

CHAPTER VII
MISCELLANEOUS

Power of Central Government to issue directions.

16. (1) Without prejudice to the foregoing provisions of this Act [144][or the Depositories Act, 1996], the Board shall, in exercise of its powers or the performance of its functions under this Act, be

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[142] Substituted for S. 15X by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002. Prior to its substitution, it read as under: -

"15X. The Presiding Officer and other officers and employees of a Securities Appellate Tribunal shall be deemed to be public servants within the meaning of section 21 of the Indian penal Code(45 of 1860)".

[143] Substituted for section15Z by the SEBI (Amendment) Act, 2002, w.e.f. 29-10-2002. Prior to its substitution, it read as under:-

"15Z. Appeal to High Court.- Any person aggrieved by any decision or order of the Securities Appellate Tribunal may file an appeal to the High Court within sixty days from the date of communication of the decision or order of the Securities Appellate Tribunal to him on any question of fact or law arising out of such order:

Provided that the High Court may, if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal within the said period, allow it to be filed within a further period not exceeding sixty days."

[144] Substituted for "this Act" by the Depositories Act 1996, w.r.e.f. 20-9-1995.

bound by such directions on questions of policy as the Central Government may give in writing to it from time to time :

Provided that the Board shall, as far as practicable, be given an opportunity to express its views before any direction is given under this sub-section.

(2) The decision of the Central Government whether a question is one of policy or not shall be final.

Power of Central Government to supersede the Board.

17. (1) If at any time the Central Government is of opinion—

(*a*) that on account of grave emergency, the Board is unable to discharge the functions and duties imposed on it by or under the provisions of this Act; or

(*b*) that the Board has persistently made default in complying with any direction issued by the Central Government under this Act or in the discharge of the functions and duties imposed on it by or under the provisions of this Act and as a result of such default the financial position of the Board or the administration of the Board has deteriorated; or

(*c*) that circumstances exist which render it necessary in the public interest so to do,

the Central Government may, by notification, supersede the Board for such period, not exceeding six months, as may be specified in the notification.

(2) Upon the publication of a notification under sub-section (1) superseding the Board,—

(*a*) all the members shall, as from the date of supersession, vacate their offices as such;

(*b*) all the powers, functions and duties which may, by or under the provisions of this Act, be exercised or discharged by or on behalf of the Board, shall until the Board is reconstituted under sub-section (3), be exercised and discharged by such person or persons as the Central Government may direct; and

(*c*) all property owned or controlled by the Board shall, until the Board is reconstituted under sub-section (3), vest in the Central Government.

(3) On the expiration of the period of supersession specified in the notification issued under sub-section (1), the Central Government may reconstitute the Board by a fresh appointment and in such case any person or persons who vacated their offices under clause (*a*) of sub-section (2), shall not be deemed disqualified for appointment :

Provided that the Central Government may, at any time, before the expiration of the period of supersession, take action under this sub-section.

(4) The Central Government shall cause a notification issued under sub-section (1) and a full report of any action taken under this section and the circumstances leading to such action to be laid before each House of Parliament at the earliest.

Returns and reports.

18. (1) The Board shall furnish to the Central Government at such time and in such form and manner as may be prescribed or as the Central Government may direct, such returns and statements and such particulars in regard to any proposed or existing programme for the promotion and development of the securities market, as the Central Government may, from time to time, require.